Docusign Envelope ID: 03DF7139-7EAF-4E0E-B8D2-E87A7B9D6D72

Conversion and Subscription Agreement

dated _____

between

Existing Shareholders

are listed in Annex A

(the "**Existing Shareholders**")

and

Seed Investors

are listed in Annex A

(the "**Seed Investors**")

and

Company

Viatu AG
c/o XELLENZ Revisionen GmbH
Zweigniederlassung Zug
Neugasse 6
6300 Zug

(the "**Company**")

(Existing Shareholders, Seed Investors and Company each a "**Party**", and collectively the "**Parties**")

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Preamble

A. The Company is organized in the form of a Swiss stock corporation (*Aktiengesellschaft*) registered with the commercial register of the Canton of Zug, Switzerland under the number CHE-496.562.005.

B. The Company has an issued statutory share capital in the nominal amount of CHF 146'249.72, divided into 14'624'972 restricted registered shares (*vinkulierte Namenaktien*) with a nominal value of CHF 0.01 per share, of which CHF 96'249.72 are paid-in.

C. The Company has outstanding convertible debt in the total amount of CHF 433'418.08, including accrued interest until 31 December 2025 (rounded) from the Seed Investors ("**Convertible Loans**") according to the terms and conditions of certain convertible loan agreements ("**Convertible Loan Agreement(s)**").

D. Due to the maturity of the Convertible Loans, the Company intends to increase its share capital by way of issuance of 1'131'911 new restricted registered shares with a nominal value of CHF 0.01 per share, and the contractual preferences as set forth in the shareholders agreement concerning the Company ("**Seed Investor Share(s)**") attached hereto as Annex D ("**SHA**"), against set-off of the Convertible Loans, thereby increasing the statutory share capital of the Company by CHF 11'319.11 to CHF 157'568.83 ("**Capital Increase**").

E. The Seed Investors have already signed the SHA, or hereby accede to the SHA, which will become effective for the Seed Investors upon Full Consummation.

Now, therefore, the Seed Investors and the Shareholders enter into this conversion and subscription agreement ("**Agreement**") and agree as follows:

1 Definitions

For purposes of this Agreement, and unless otherwise defined in the SHA, capitalized terms shall have the meanings set forth in Annex 1.

2 Increase of Share Capital and Undertaking to Subscribe Shares

2.1 Undertaking of Existing Shareholders

2.1.1 Increase of Share Capital

The Capital Increase shall be effected by issuing 1'131'911 Seed Investor Shares at an issue price of CHF 0.3829 (rounded) per Seed Investor Share ("**Issue Price**").

The "**Agio**" (being the difference between the respective Issue Price and their nominal value) shall be booked as an equity contribution into the capital contribution reserves (*Kapitaleinlagereserven*) of the Company on a separate account under the legal reserves and declared for Swiss tax purposes in accordance with art. 5 para. 1bis of the Swiss withholding tax law (SR 642.21).

2.1.2 Extraordinary General Meeting

Each of the Existing Shareholders and the Company hereby undertakes to the Seed Investors to procure that an extraordinary general meeting of shareholders of the Company ("**Extraordinary General Meeting**") is convened in a timely manner and takes place on the Closing Date and to approve

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(i) the Capital Increase and (ii) the updated articles of association, substantially in the form attached hereto as Annex 2.1.2.

2.1.3 Proxy

To the extent required, this Agreement shall serve as a proxy by each Existing Shareholder in favour of the Board, with full right of substitution, to vote in favour of the resolutions set forth in this Agreement and more generally undertake any actions necessary in view of the fulfilment of the transactions set forth in this Agreement in compliance with its terms.

2.2 Undertaking of the Seed Investors

2.2.1 Subscription of Seed Investor Shares

Subject to the terms and conditions of this Agreement, the Seed Investors undertake to subscribe for a total of 1'131'911 Seed Investor Shares at the Issue Price for an aggregate subscription amount of CHF 433'416.32 (the Issue Price x the respective number of Seed Investor Shares per Seed Investor "**Individual Subscription Amount**").

The Seed Investors undertake to execute and deliver the subscription form attached hereto as Annex 2.2.1 to the Company on or before the Closing Date.

2.2.2 Payment of Nominal Value

The Company undertakes to pay the total nominal value of the newly issued Seed Investor Shares – i.e. CHF 11'319.11 (the respective nominal amount of each Seed Investor, the "**Nominal Amount**") in cash on behalf of the Seed Investors (as a loan) to a blocked bank account ("**Company Loan**").

2.2.3 Agio by Way of Set-off

Each Seed Investor agrees to unconditionally and irrevocably offset the respective Individual Subscription Amount minus the respective Nominal Amount against the respective Convertible Loan as follows:

a. the respective difference between the Nominal Amount and the Individual Subscription Amount, ("**Converted Agio**") will be offset against the Convertible Loan minus the Nominal Amount ("**Converted Loan**");

b. the difference between the Converted Loan and the total amount due under the Convertible Loan Agreement (i.e. an amount equal to the respective Nominal Amount) will offset against the Company Loan;

c. upon Full Consummation, all claims of the respective Seed Investor against the Company under the Convertible Loan Agreement and the Company Loan are settled; and

d. any amount remaining due to the rounding of Seed Investor Shares are waived by the respective Seed Investor.

This Agreement replaces and supersedes the Convertible Loan Agreement with full effect, in particular with respect to the ratchet mechanism referenced therein.

2.3 Waiver of Preferential Subscription Rights

Each Existing Shareholder hereby (i) unconditionally and irrevocably waives all of its preferential subscription rights (*Bezugsrechte*) in connection with the Capital Increase and (ii) agrees that the

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Company allocates the relevant number of Seed Investor Shares in the Capital Increase to the Seed Investors in accordance with this Agreement.

2.4 Undertaking of the Parties

The Parties acknowledge the right of Ndoto LLC to appoint the Seed Investor Director (as defined in the SHA).

Furthermore, the Parties, who have not already signed the SHA, hereby accede to the SHA and agree to be bound by the provisions of it. Additionally, the Parties agree to update the list of parties in the SHA with the list of parties attached to this Agreement as Annex 2.4, whereas the Seed Investors shall be treated also as Seed Investors in the context of the SHA.

3 Closing

3.1 Place and Date of Closing

The Closing shall take place on or around 20 June 2025 ("**Closing Date**"), at the offices of the notary of LEXR Law Switzerland AG, or such other date or place as the Seed Investors and the Shareholders mutually agree.

3.2 Closing Actions and Deliveries

At Closing, the Shareholders shall procure that (i) the following documents shall be delivered, in each case duly executed, and (ii) the following actions shall be performed:

a. the Extraordinary General Meeting shall be held in the presence of a notary approving all resolutions set forth in Section 2.1.2;

b. the Board shall issue the report of the Board regarding the Capital Increase (*Kapitalerhöhungsbericht*) and take the resolutions on the ascertainment and the execution of the Capital Increase (*Feststellungsbeschluss*) in the presence of a public notary;

c. the Board shall deliver the duly signed Application; and

d. the Board shall take the resolution regarding the registration of the Seed Investors as holder of the relevant number of Seed Investor Shares in the Company's share register.

4 Ownership Structure after the Capital Increase

After completion of the Capital Increase, the ownership structure of the Company shall be as specified in the cap table set forth in Annex 4.

The Shareholders acknowledge and consent that Adrian Adank has transferred or will transfer the Shares held by him to Adank AG, CHE-469.714.956. The Shareholders further acknowledge and agree that this transfer of Shares is intended solely to correct a formal irregularity and does not trigger any transfer restrictions under the SHA.

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5 Miscellaneous

5.1 Nature of Parties' Rights and Obligations

Except as specifically provided otherwise in this Agreement, the rights and obligations of the Parties hereunder shall be several (and not joint). The obligations of the Parties hereunder are contractual in nature and the Parties agree that they do not form, and this Agreement shall not be deemed to constitute, a simple partnership (*einfache Gesellschaft*) pursuant to art. 530 et seq. CO.

5.2 Confidentiality

The existence as well as the terms and conditions of this Agreement, and any information exchanged among the Parties (including their respective representatives or advisors) during the due diligence and the negotiation of the transactions contemplated by this Agreement and/or pertaining to the business and the operation of the Company (collectively "**Confidential Information**"), shall be kept strictly confidential by each Party. The Parties shall neither use in any form nor disclose to any third party any Confidential Information unless explicitly authorized by this Agreement. The Parties shall ensure that their employees, directors and any other representatives as well as the advisors of each Party to whom any such Confidential Information is entrusted comply with these restrictions. Any announcement or press release regarding the matters contemplated by this Agreement shall only be made by the Company with the prior written consent of the Board.

The term Confidential Information shall not include any information: (i) which as of the time of its disclosure by a Party was already lawfully in the possession of the receiving Party as evidenced by written records, or (ii) which at the time of the disclosure was in the public domain, or (iii) the disclosure of which was previously explicitly authorized by the respective Party.

The non-disclosure obligation shall not apply to any disclosure of Confidential Information required by law or regulations. In the event a disclosure of Confidential Information is required by law or regulations (including, without limitation, for tax, audit or regulatory purposes), the disclosing Party shall use all reasonable efforts to arrange for the confidential treatment of the materials and information so disclosed.

Nothing herein shall restrict the Company from granting third parties customary due diligence access for purposes of financial, commercial, strategic or similar transactions based on appropriate non-disclosure and non-use agreements.

5.3 Successors and Assigns

This Agreement shall be binding upon and shall inure to the benefit of the Parties and their respective permitted successors and assigns; provided, however, that no Party shall be entitled to assign or transfer any of the rights or obligations hereunder to any other party except with the prior written consent of each Party.

5.4 Form Requirements and Notices

This Agreement may be executed in writing or in electronic form (such as an electronic file which contains a scan of the wet ink signature or signed by Skribble, DocuSign or AdobeSign or a similar tool) and be delivered by electronic mail or another transmission method; the counterpart so executed and delivered shall be deemed to have been duly executed and validly delivered and be valid and effective for all purposes.

All notices and other communications made or to be made under this Agreement shall be given in writing but dispatched to the other Parties by email which shall only be deemed validly submitted if the

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sender has received a written or electronic notification of receipt (to the email addresses known to the Company, unless a Party notifies the other Parties and the Company of a change).

6 Governing Law and Jurisdiction

6.1 Governing Law

This Agreement shall in all respects be governed by, and construed in accordance with, the substantive laws of Switzerland, to the exclusion of conflict of law principles and the UN Convention on the international sale of goods (CISG).

6.2 Jurisdiction

All disputes arising out of or in connection with this Agreement, including disputes regarding its conclusion, validity, binding effect, amendment, breach, termination or rescission, shall be subject to the exclusive jurisdiction of the ordinary courts of the Canton of at the seat of the Company.

{*Signatures on the following page(s)*}

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Signatures

Signature: DocuSigned by: 2265D1897EF946F...

Name: Alfredo Seidemann

Signature: DocuSigned by: Guido Juan Pablo Dunckel 5EF90D94DFC74CF...

Name: Guido Juan Pablo Dunckel

Signatures: DocuSigned by: Rico Viray BF57EB55922E42E... Signed by: Susan Miller 437F348B9DA1404...

Names and Functions: Rico Viray, Founding Partner and Susan Miller, Member of the Board on behalf of Ndoto LLC

Signature: DocuSigned by: Tore Nyhus AE5687EA54EB406...

Name and Function: Tore Nyhus, CEO, on behalf of Tåkeslottet AS

Signature: Signed by: Steinar Teien 04C514258B5E44F...

Name and Function: Steinar Teien, CEO, on behalf of Teien Invest AS

Signature: Signed by: Thorvald Hærem 2717E6CA72A5441...

Name and Function: Thorvald Hærem, CEO, on behalf of Decision Lab AS

Docusign Envelope ID: 03DF7139-7EAF-4E0E-B8D2-E87A7B9D6D72

Signature: Signed by: Maxime Calot 0F001F48CCEF4DD...

Name: Maxime Calot

Signature: DocuSigned by: Alexander Schärer 29CCBFFE3D2C45B...

Name: Alexander Schärer

Signature: Signiert von: 21BDFAD65CFD450...

Name: Stephan Baumann

Signature: DocuSigned by: 218354F3C3EE476...

Name: Adrian Adank on behalf of Adank AG

Signature: DocuSigned by: Ambros Gasser 1F73D4799EC4427...

Name: Ambros Gasser on behalf of Alpinschule Insbruck GmbH

Minority Shareholders (as defined in the SHA)

Signature: DocuSigned by: 2265D1897FF946F...

Name: represented by Alfredo Seidemann

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Company

Signature: DocuSigned by: 2265D1897FF946F...

Name and Function: Alfredo Seidemann, member of the Board, on behalf of the Company

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Annex A: List of Parties

Existing Shareholders	
Name	**Email(s)**
Alfredo Seidemann	alfredo@viatu.com
Guido Juan Pablo Dunckel	guido@viatu.com
Emilian Popa	emilienpopa@gmail.com
Lena Melcher	lenamelcher00@gmail.com
Simon Hasenfratz	s_hasenfratz@gmx.ch
Elisabeth Melcher	e.melcher@hotmail.com
Dominic Freudensprung	d.freudensprung@gmail.com
Sandro de Luca	sdl@private-market.ch
Dominik Kaiser	dominik14k@gmail.com
Luca Michas	lucamichas@gmail.com
Deniz Canay	cny.deniz@gmail.com
Franco Bargetze	fbargetze@gmail.com
Frederik Gerner	f.w.b.gerner@gmail.com
Ragna Sørlundsengen	ragnabs@gmail.com
Ben Willson	ben@viatu.com
Urs Helfenstein	uhelfenstein@gmail.com
Anita Sorlundsengen	anitabaksor@gmail.com
Loic Amado	amadoloic@gmail.com
Nicolas Buteau	nicolas@yayem.com
Georg Büchel	gwbuechel@bluewin.ch
Josef Büchel	j.buechel@hispeed.ch
Richard Steiblin	r.steiblin@breitband.ch
Matthias Wittenberg	matthias.wittenberg@infinitefox.com

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Mariana Sánchez de Ovando	marianasdo@gmail.com
Oliver Reuter	o.reuter@treufin-reuter.ch
Thomas Brunschwiler	thomas.brunschwiler@gmail.com
Existing Shareholders and Seed Investors	
Name	**Email(s)**
Alpinschule Innsbruck GmbH	ambros.gasser@asi.at
Ndoto, LLC	Reviray@gmail.com Smillerviray1@gmail.com
Tåkeslottet AS	tore.nyhus@ofp.no
Teien Invest AS	teien@alpha-revisjon.no
Decision Lab AS	thorvald.harem@bi.no
Adank AG	adrian@adank-ag.ch
Maxime Calot	mcalot01@gmail.com
Alexander Schärer	alexander.c.schaerer@gmail.com
New Seed Investor	
Name	**Email(s)**
Stephan Baumann	hupfpfupf@gmail.com

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Annex D: SHA

{*attached*}

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FINAL VERSION

SHAREHOLDERS AGREEMENT

dated as of _____

and entered into by and among

1. Pre-Seed Investors

Pre-Seed Investors are all Pre-Seed Investors in Annex A

and

2. Seed Investors

Seed Investors are all Seed Investors in Annex B

(Pre-Seed Investors and Seed Investor(s) collectively "**Investors**" and individually an "**Investor**")

and

3. Existing Shareholders

3.1 Alfredo Seidemann, alfredo@viatu.com ("**Existing Shareholder 1**")

3.2 Guido Juan Pablo Dunckel, guido@viatu.com ("**Existing Shareholder 2**, and together with the Existing Shareholder 1, the "**Existing Shareholders**")

and

4. Company

Viatu AG, c/o XELLENZ Revisionen GmbH, Zweigniederlassung Zug, Neugasse 6, 6300 Zug, Switzerland, guido@viatu.co ("**Company**")

(Investors, Existing Shareholders and Company collectively "**Parties**" and individually a "**Party**")

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Recitals

A. The Company is organized in the form of a Swiss stock corporation (*Aktiengesellschaft; société anonyme*) registered with the commercial register of the Canton of Zug under the number CHE-496.562.005 having its registered office at c/o XELLENZ Revisionen GmbH, Zweigniederlassung Zug, Neugasse 6, 6300 Zug, Switzerland. The Company's core business consists of operating a technological and marketing platform in connection with travel and tourism products ("**Business**").

B. Each Pre-Seed Investor has entered into a convertible loan agreement with the Company, whereas such Pre-Seed Investor, as a lender, shall provide (and has provided) a certain loan amount to the Company, which shall, unless converted earlier in a Qualified Financing (as defined in each such convertible loan agreement), be converted into Common Shares of the Company at the Maturity Date (as defined in each such convertible loan agreement at a conversion price equivalent the valuation of the Company at such Maturity Date, divided by the number of then outstanding shares of the Company, on a fully diluted basis (but not including other convertible loans and non-granted or unvested options; "**Pre-Seed Investor Mandatory Conversion**"). For the avoidance of doubt, the conversion of such convertible loans in the event of a Qualified Financing (as defined in each such convertible loan agreement) shall not be deemed as a Pre-Seed Investor Mandatory Conversion under this Agreement, but shall be addressed in line with the documents governing the applicable Qualified Financing (as defined in each such convertible loan agreement).

C. The Seed Investor has entered (or will enter) into a convertible loan agreement ("**Convertible Loan Agreement**") with the Company, whereas the Seed Investor, as a lender, shall provide (or has provided) a certain loan amount to the Company, which shall, unless converted earlier upon the occurrence of one of the conversion events set forth in the Convertible Loan Agreement ("**Seed Investor Mandatory Conversion**"), be converted into Shares of the Company with specific rights under this Agreement, in particular, but not limited to, the rights described under Section 7 ("**Seed Investor Shares**").

D. The Parties execute this Agreement to govern their respective rights and obligations as shareholders of the Company and provide for the rules governing the operation of the Company, with a view to maximizing its value for the Shareholders and ultimately achieving an exit for the Shareholders from their investment in the Company.

Based on the foregoing, the Parties agree as follows:

1. DEFINITIONS

For purposes of this Agreement, capitalized terms shall have the meanings set forth in **Annex 1**.

2. GENERAL UNDERTAKING

Each Shareholder hereby undertakes to *(i)* generally exercise its powers and voting rights as a Shareholder and *(ii)* procure that the Director(s) nominated by such Shareholder exercise their powers and voting rights on the Board to the extent legally permissible and compatible with the

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fiduciary duties of such Director(s), in a manner which is consistent with the terms of this Agreement and to ensure that the provisions of this Agreement are given full effect at all times during the term of this Agreement.

The Company will not physically issue share certificates. Rather, all holdings of Shares will be recorded in the Company's share register. The Cap Table is attached hereto as **Annex 2**.

3. ARTICLES AND BOARD REGULATIONS / ORDER OF PRECEDENCE

The Parties undertake to adopt, implement and maintain the Company's articles of incorporation and board regulations in the form as attached hereto as **Annex 3(i)** ("**Articles**") and Annex **3(ii)** ("**Board Regulations**"), subject to amendments and modifications resolved from time to time in accordance with this Agreement, the Articles, the Board Regulations and other governing documents of the Company, as amended from time to time.

In the event of any conflict or discrepancy between the provisions of this Agreement and the Articles, the Board Regulations or any other governing documents of the Company, the provisions of this Agreement shall prevail in such a case between and among the Shareholders.

4. BOARD OF DIRECTORS

The Board shall comprise at least one and a maximum of three Directors. Throughout the term of this Agreement:

(a) following the conversion of the Seed Investor's loan under the Convertible Loan Agreement, the Seed Investor shall have the right to be represented on the Board by one Director nominated by the Seed Investor from time to time, if and as long as the Seed Investors hold in aggregate at least 10% of the then outstanding share capital (the "**Seed Investor Director**"); and

(b) the Existing Shareholders shall have the right to be represented on the Board by two Directors nominated from time to time by simple majority of the voting rights represented by the Existing Shareholders (each an "**Existing Shareholder Director**").

Any other Director (if any) shall be elected by the General Meeting of Shareholders in line with the Articles.

As at the Effective Date, the initial Existing Shareholder Director shall be Alfredo Seidemann and Guido Juan Pablo Dunckel.

5. CONTROL / IMPORTANT SHAREHOLDER AND BOARD MATTERS

Each Shareholder undertakes and agrees:

(a) not to cast an affirmative vote in respect of any of the important shareholder matters specified in Part A of **Annex 5** ("**Important Shareholder Matters**"), unless any such Important Shareholder Matter will be approved by at least: *(i)* $66^2/_3$ percent of shareholder votes and the absolute majority of the then issued share capital of the Company issued by the Company and *(ii)* after a Seed Investor Mandatory Conversion (if any), $66^2/_3$ percent of shareholder votes of the holders of Seed Investor Shares issued by the

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Company, whereby each Share shall entitle its holder to one vote irrespective of the class to which it belongs; and

(b) to procure that the Director(s) nominated by such Shareholder shall not, subject only to their fiduciary duties, cast an affirmative vote with respect to any of the important Board matters specified in Part B of **Annex 5** ("**Important Board Matters**"), unless such Important Board Matter will be approved by *(i)* the simple majority of the Directors present at the meeting and *(ii)* after a Seed Investor Mandatory Conversion (if any), the Seed Investor Director.

6. INFORMATION RIGHTS

During the term of this Agreement, the Company shall provide each Shareholder by e-mail with *(i)* financial statements within 120 days of the end of each financial year (if auditors are appointed, in audited form) and *(ii)* unaudited quarterly financial statements within 45 days of the end of each fiscal quarter.

In addition, each Investor shall have the opportunity at its discretion to discuss any issues relating to its investment and the Company at least on an annual basis with the Company, and the Company shall allow *(i)* consultation on significant issues and *(ii)* access to the books, records and facilities of the Company at any time upon reasonable advance request to the Board at the costs of the Investor.

7. PREFERENCES

7.1 Liquidation Preferences

In the event a Liquidation occurs, the proceeds resulting from such Liquidation, shall be allocated to the holders of Shares in the following order of precedence ("**Liquidation Preference**"): *(i)* in **first priority** to the holders of Seed Investor Shares *pro rata* to their holdings in the class of Seed Investor Shares (to the extent in existence following a Seed Investor Mandatory Conversion, whether such class exists as a distinct share class under the Articles or as a contractual class under this Agreement) up to the Preference Amount and *(ii)* in **second priority**, if and to the extent the Preference Amount has been fully paid, to all holders of Common Shares *pro rata* to their respective aggregate holdings of Shares in the then issued share capital of the Company on an as-converted basis.

Each holder of Common Shares hereby irrevocably undertakes, in favor of the holders of Seed Investor Shares, to execute all documents or instruments and to take all required actions and measures to comply with and (to the extent not yet effected) effect the above Liquidation Preference, and each holder of Common Shares hereby irrevocably assigns to each current or future holder of higher ranking Seed Investor Shares *pro rata* to their holdings of Seed Investor Shares, to the extent required to give effect to the above Liquidation Preference as between and among the Common Shareholders and holders of Seed Investor Shares, its rights *vis-à-vis* the Company to receive Liquidation proceeds, and the Seed Investor (and, upon accession, each additional actual or prospective holder of Seed Investor Shares) hereby accepts such assignment. The Company hereby acknowledges its notification of such assignment.

Without limiting the generality of the foregoing, the Shareholders acknowledge and agree that in case of a Sale:

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(a) by way of a transfer of all or a major part of the Company's assets, the Shareholders shall resolve on a Dividend or liquidation of the Company in order to effect the Liquidation Preference; and

(b) by way of a transfer or other disposal (whether through a single transaction or a series of related transactions) of the Shares, the Liquidation Preference shall be reflected in the price expressed to be payable *(i)* per one Seed Investor Share to holders of Seed Investor Shares and *(ii)* per one Common Share to the Common Shareholders by the acquirer under the relevant share purchase agreement.

7.2 Limitation of Preferences

The Liquidation Preference under this Section 7 shall terminate and cease automatically upon full payment of the Preference Amount.

8. RAISING OF ADDITIONAL CAPITAL

In order to finance the Company and its operations in accordance with its business plan, the Company shall use its best efforts to raise sufficient additional equity financing in one or a series of additional financing rounds or debt financing, if and as proposed by the Board ("**Approved Financing**"). Entirely without prejudice to Section 12.9(b), each Shareholder hereby acknowledges and approves that any pre-emption rights on Shares that such Shareholder does not exercise in an Approved Financing may be re-allocated by the Board to new investors, as may be required or deemed appropriate by the Board to effect and consummate such Approved Financing.

9. TRANSFER RESTRICTIONS

9.1 General Restriction

A Transfer of Shares and pre-emption rights on Shares (*Bezugsrechte; droits de souscription préférentiel*) shall only be permitted in accordance with this Section 9, *provided*, however, that *(i)* holders of Seed Investor Shares may at any time Transfer Shares to an Affiliate and *(ii)* Section 9.3 (Right of First Refusal) does not apply to Transfers of Shares between the Company and Shareholders who have acquired their Shares under an ESOP. If an Affiliate ceases to be an Affiliate of the holder of Seed Investor Shares who Transferred the Shares, then such Affiliate must immediately re-transfer the Shares to the relevant holder of Seed Investor Shares (or any of its designated Affiliates). Except as explicitly provided otherwise in this Agreement, the Shares shall not be pledged, assigned by way of security or otherwise used as security and shall remain free and clear of any liens, encumbrances, charges or any other third-party rights.

9.2 Accession

No person or entity shall become a shareholder of the Company unless and until such person or entity shall first have executed an accession declaration pursuant to which such person or entity agrees to be fully bound by and be entitled pursuant to the terms and conditions of this Agreement in the same capacity as the transferor or predecessor (in case of a Transfer or succession). Each Party agrees in advance that any person or entity executing such accession declaration that is based on an acquisition of Shares permitted pursuant to this Agreement shall become a Party, and that such accession declaration does not need to be countersigned by the Parties.

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9.3 Right of First Refusal

9.3.1 Grant and Notification

Each Shareholder hereby grants to the other Shareholders a right of first refusal with respect to the Shares held by such Shareholder in accordance with the terms and conditions set forth in this Section 9.3 ("**Right of First Refusal**"). A Shareholder may exercise its Right of Frist Refusal only in respect of all (but not a part of the) Relevant Shares.

If a Shareholder (or a group of Shareholders) wishes to Transfer all or a part of its Shares ("**Relevant Shares**") to a third party (including another Shareholder, but excluding an Affiliate) ("**Right of First Refusal Event**"), such Shareholder(s) ("**Selling Shareholder(s)**") shall submit an offer to all other Shareholders (with a copy to the Company) stating in writing the price in cash and the other terms of the proposed Transfer of all Relevant Shares ("**Right of First Refusal Notice**").

If the Selling Shareholder(s) has/have received a *bona fide* purchase offer for the Relevant Shares from a third party (including another Shareholder), such offer shall be attached to the Right of First Refusal Notice. In the latter case (*i.e.*, a third party offer), the price in cash and the other terms of the *bona fide* purchase offer from a third party shall be the price and the terms of the Right of First Refusal. Otherwise (*i.e.*, without third party offer) it is the price and the terms offered by the Selling Shareholder.

9.3.2 Exercise

Each Shareholder wishing to exercise its Right of First Refusal in respect of the Relevant Shares shall so notify the Company and the Selling Shareholder(s) within a period of 30 days from receipt of the Right of First Refusal Notice ("**Right of First Refusal Exercise Notice**"). If no Right of First Refusal is validly exercised within this time period, the Selling Shareholder(s) shall be free, subject only to Section 9, to Transfer the Relevant Shares to the proposed acquirer, on terms not more favorable to the proposed acquirer than those offered to the Shareholders within a period of six months after expiry of the 30-day exercise period for the Right of First Refusal. Thereafter, the procedure pursuant to this Section 9.3 shall be repeated prior to any such Transfer.

9.3.3 *Pro Rata* Allocation

In the event that more than one Shareholder exercises its Rights of First Refusal for the Relevant Shares, the Relevant Shares shall be allocated amongst such exercising Shareholders *pro rata* to their then existing holdings of Shares, unless the exercising Shareholders agree otherwise.

9.3.4 Consummation of Transfer

The Transfer of the Relevant Shares shall be consummated within 60 days from receipt of the Right of First Refusal Notice by the Company unless the *bona fide* purchase offer provided for a longer term, in which case such longer term of the *bona fide* purchase offer shall apply.

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9.4 Tag-Along (Co-Sale Right)

9.4.1 Grant and Notification

Each Shareholder hereby grants to the other Shareholders the right to co-sell all the Shares held by such other Shareholder together with the Selling Shareholder(s) to the proposed acquirer in accordance with the terms and conditions set forth in this Section 9.4 ("**Tag-Along Right**"). A Shareholder may exercise its Tag-Along Right only in respect of all (but not a part of the) Shares held by such Shareholder.

In the event a Shareholder (or a group of Shareholders) wishes to Transfer all or a part of its Shares ("**Relevant Shares**") in one or a series of related transactions to a proposed acquirer (including another Shareholder, but excluding an Affiliate) on the basis of a *bona fide* purchase offer, and *provided* such Transfer of Shares would result in either *(i)* a Change of Control or *(ii)* a reduction of the Existing Shareholders' holdings in the Company to under 30 percent of the then issued share capital of the Company ("**Tag-Along Event**"), such Shareholder(s) ("**Selling Shareholder(s)**") shall notify the other Shareholders (with a copy to the Company) thereof, *mutatis mutandis* in accordance with Section 9.3.1 ("**Tag-Along Notice**"). Such Tag-Along Notice may be part of a Right of First Refusal Notice according to Section 9.3.

9.4.2 Terms of Tag-Along

The terms of the Tag-Along Right shall be the same *bona fide* consideration per Share and otherwise the same terms and conditions as applicable to the Selling Shareholder(s). The proceeds resulting from such Transfer in case of a Tag-Along Event shall be deemed to constitute Liquidation proceeds and shall be allocated to the holders of Seed Investor Shares and Common Shareholders in accordance with Section 7.1.

9.4.3 Exercise

Each Shareholder wishing to exercise its Tag-Along Right with respect to all Shares held by such Shareholder shall so notify the Selling Shareholder(s) (with a copy to the Company) within an exercise period of 30 days from receipt of the Tag-Along Notice ("**Tag-Along Exercise Notice**"). If no Tag-Along Exercise Notice is submitted until the expiry of the exercise period, the Tag-Along Right of that Shareholder shall be deemed to have been forfeited (*verwirkt; périmé*) with respect to this Tag-Along Event. If the proposed acquirer refuses to accept the purchase of the Shares from the Shareholders exercising their Tag-Along Right, the Selling Shareholder(s) shall be prohibited from Transferring the Relevant Shares to the proposed acquirer.

9.4.4 Transfer to Proposed Acquirer

Subject to the exercise of the Right of First Refusal (if exercised in accordance with Section 9.3), the Selling Shareholder(s) shall be free to Transfer the Relevant Shares to the proposed acquirer on the terms disclosed to the other Shareholders in the Tag-Along Notice and the Right of First Refusal Notice within a period of six months starting after the expiry of the 30-day exercise period for the Tag-Along Right. Thereafter, the procedure pursuant to this Section 9.4 shall be repeated prior to any such Transfer.

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9.5 Drag-Along (Co-Sale Obligation)

9.5.1 Grant and Notification

In the event a Shareholder (or a group of Shareholders) solely or jointly holding either *(i)* more than 50 percent of the issued share capital of the Company or *(ii)* more than 30 percent of the issued share capital of the Company, which also comprise a majority of the Seed Investor Shares, wish(es) to Transfer all its (their) shares in one or a series of related transactions to a proposed acquirer (including another Shareholder, but excluding an Affiliate), who wishes to acquire all (but not less than all) Shares in the Company, pursuant to a *bona fide* purchase offer ("**Drag-Along Event**"), such Shareholder(s) ("**Relevant Selling Shareholder(s)**") shall be entitled to require that all other Shareholders co-sell all their Shares to the proposed acquirer ("**Drag-Along Right**").

The Relevant Selling Shareholders shall notify the other Shareholders (with copy to the Company) thereof, *mutatis mutandis* in accordance with Section 9.3.1 ("**Drag-Along Notice**").

For the avoidance of doubt and notwithstanding anything to the contrary contained herein, the Right of First Refusal (Section 9.3) and the Tag-Along Right (Section 9.4) shall not apply in case of a Drag-Along Event.

9.5.2 Terms of Drag-Along and Transfer to Proposed Acquirer

The terms and conditions applicable for the Transfer of all Shares to the acquirer shall be in accordance with the terms of the underlying agreement between the Relevant Selling Shareholder(s) and the acquirer, *provided*, however, that - without the consent of affected Shareholders - *(i)* such terms and conditions shall be identical for all Shareholders, *(ii)* the consideration payable by the acquirer shall be in cash, *(iii)* each Shareholder shall only be severally (and not jointly and severally with all other Shareholders) liable to the acquirer for representations, warranties and other undertakings in such underlying agreement, and *(iv)* the Transfer of Shares to the acquirer shall be completed no later than within six months after the date of receipt of the Drag-Along Notice by the Company.

The proceeds resulting from such Transfer in case of a Drag-Along Event shall be deemed to constitute Liquidation proceeds and shall be allocated to the holders of Seed Investor Shares and Common Shares in accordance with Section 7.1.

10. LIQUIDATED DAMAGES

Each Shareholder being in material breach of any provision of this Agreement (it being agreed that any breach of Section 2, 4, 5, 7, 8, 9 and/or 12.4 shall be deemed a material breach for purposes of this Section 10) shall pay liquidated damages (*Konventionalstrafe; clause pénale*) to each non-defaulting Shareholder in the amount of CHF 25,000 for each violation or breach. With respect to any violation or breach that is capable of being cured, liquidated damages shall only become payable only if such violation or breach is not cured by the defaulting Shareholder within 20 days after having been notified of such violation or breach by any of the non-defaulting Shareholders.

Notwithstanding the payment of the liquidated damages, the defaulting Shareholder *(i)* shall be liable to each non-defaulting Shareholder for any losses and damages incurred by such non-defaulting Shareholders in excess of its entitlement to the amount of CHF 25,000 as set forth in

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the preceding paragraph (which entitlement shall be *pro rata* to the relevant non-defaulting Shareholder's shareholdings in the Company), and *(ii)* shall continue to be bound by the terms of the violated provision, for which each non-defaulting Shareholder may continue to seek specific enforcement and/or such other injunctive relief as may be granted by any court and/or arbitral tribunal of competent jurisdiction.

11. MINORITY REPRESENTATION

11.1 Representation

Shareholders (not including Seed Investor) holding less than or equal to 3% of the Company's fully-diluted share capital are pooled in one group ("**Minority Shareholders**").

The Minority Shareholders hereby instruct a representative ("**Representative**"), who must be a Shareholder, to represent such Shareholders (their heirs, legal representative or administrator as the case may be) as regards the Company and any rights under this Agreement, for the full term thereof, particularly to perform all acts, exercise all rights and assume all obligations herein. The Representative will exercise rights with the economic interest of the Minority Shareholders in mind. The Parties agree that the first Representative will be the chairman of the Board.

11.2 Power of the Representative and Proxy

Powers of the Representative shall include (but not be limited to) the right and entitlement to, and each Minority Shareholder herewith grants power of attorney to the Representative and to each Founder, each individually, to represent the relevant Minority Shareholder at the shareholders' meetings and to vote their shares:

(a) exercise and waive all and any rights relating to the represented Shares (all rights relating to the ownership of Shares) and hereby in particular exercise any voting rights or exercise or waive any pre-emption or subscription rights pertaining to the represented Shares;

(b) exercise or waive all and any rights (with the exception made in this Section hereinafter) under this Agreement, in particular the Right of First Refusal and Purchase Option;

(c) exercise all and any rights in the capacity of a Party of this Agreement and any ancillary documents referred to in this Agreement, especially but not limited to enter into, amend and/or terminate this Agreement, enter into a new shareholders' agreement replacing this Agreement, and any ancillary documents referred to in this Agreement;

(d) participate in negotiations with respect to a Right of First Refusal Event, Tag-Along Event, Drag-Along Event or Triggering Event (it being understood that no other Minority Shareholders other than the Representative shall contact or interact with an acquirer (including another Shareholder) that does not qualify as Minority Shareholders); and

(e) confer all authorities, powers and rights which a Shareholder could exercise in their capacity as a Shareholder.

<u>Exceptions</u>: The Representative shall not have the right to exercise the following rights of the Minority Shareholders:

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(a) Right to sell: Each Minority Shareholder can individually exercise his right to sell all or part of their Shares at any time. In case a Minority Shareholder wants to sell all or part of their Shares, they shall inform the Representative accordingly who will assist the respective Minority Shareholder in correctly executing their information obligations and comply with the transfer restrictions set forth in this Agreement.

(b) Tag-Along Right: Each Minority Shareholders can individually exercise their Tag-Along Right and individually decide whether they want to exercise their Tag-Along Right.

Each Minority Shareholder herewith grants power of attorney to the Representative and to each Founder, each individually, to represent the relevant Minority Shareholder at the shareholders' meetings and to vote their Shares accordingly. In each case including the rights (i) of self-contracting, (ii) to represent another Party or other Parties, (iii) to participate as a party to the transaction contemplated by this Agreement (or any ancillary documents or agreement referred to in this Agreement), and (iii) to render all necessary declarations and documents as well as to execute all acts in connection with this Agreement.

11.3 Exercise of Power

When exercising the rights and authorities pertaining to the exercise of voting and other rights pursuant to Section 11.2, the Representative is vis-à-vis the Minority Shareholders obliged to comply with the following provisions:

(a) before making use of its rights and authorities pertaining to the exercise of voting and other rights pursuant to Section 11.2, the Representative shall request the Minority Shareholders to vote internally on the relevant subject matter. Such internal vote is to be made by the Minority Shareholders within five (5) business days from the dispatch of the Representative's request, or else be deemed non-participating to a vote, which shall not in any way curtail the powers of the Representative with regard to those shares represented. The Representative shall without undue delay (*unverzüglich*) inform all Minority Shareholders of the outcome of the Minority Shareholders' internal vote; and

the Representative shall make use of its rights and authorities pertaining to the exercise of voting and other rights pursuant to Section 11.2 in a uniform manner and vote on all Shares in the Company held by the Minority Shareholders in accordance with the internal simple majority of the votes cast by the Minority Shareholders.

11.4 Election of Representative

If the Representative is (i) no longer a Shareholder, (ii) for any reason can no longer act as Representative, or (iii) the Minority Shareholders decide with a majority vote to revoke the Representative, a new Representative, who must be Shareholder, will be elected by the Board, in consultation with the Minority Shareholders. Ad interim, the Minority Shareholders agree that their votes will be considered in line with the recommendations of the Existing Shareholder Director(s).

12. TERM

This Agreement shall enter into force and become effective as of the Effective Date and shall continue to be effective and in force for each Party (and such Party's successors and assigns) for an initial fixed term until the tenth anniversary of the Effective Date. Thereafter, this

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Agreement shall continue to be in effect for successive periods of five years unless terminated by any Shareholder upon twelve months' prior written notice to all other Parties. Any termination by a Shareholder shall only be effective with respect to the respective Shareholder and shall be without prejudice to the continued binding effect of this Agreement for all other Parties.

Notwithstanding the foregoing, this Agreement shall be terminated for a specific Party upon such Party ceasing to be a shareholder of the Company in accordance with the terms and conditions of this Agreement, whereas such cessation and release shall be without prejudice to any accrued rights and obligations of the relevant Party existing at the time of such cessation and release.

13. MISCELLANEOUS

13.1 Related Party Transactions

All transactions and agreements between the Company and the Shareholders (or affiliated or related persons of such Shareholders) shall reflect market conditions and shall be made at arm's length terms.

13.2 Nature of Parties' Rights and Obligations

Except as specifically provided otherwise in this Agreement, the rights and obligations of the Parties hereunder shall be several (and not joint). The obligations of the Parties hereunder are contractual in nature and the Parties agree that they do not form, and this Agreement shall not be deemed to constitute, a simple partnership (*einfache Gesellschaft; société simple*) pursuant to art. 530 et seq. CO.

13.3 Confidentiality

The Parties shall keep the terms of this Agreement and any information relating to the Company strictly confidential which is not labeled by the competent body as public information (collectively "**Confidential Information**"). The Parties shall neither use in any form nor disclose to any third party any Confidential Information unless explicitly authorized by this Agreement. The non-disclosure obligation shall not apply to any disclosure of Confidential Information required by law or regulations. Nothing herein shall restrict the Company from granting third parties customary due diligence access for purposes of financial, commercial, strategic or similar transactions based on appropriate non-disclosure and non-use agreements.

13.4 Non-Competition/Non-Solicitation

The Existing Shareholder undertakes for the entire term of this Agreement and for a period of one (1) year after termination of this Agreement that without the prior written consent of the Board he will not:

(a) directly or indirectly engage in any way in any business which is competitive with the Business; or

(a) use directly or indirectly any knowledge acquired as shareholder of the Company for an activity competing with the Business; or

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(b) on his/her own behalf or for any other person, firm or company directly or indirectly offer employment to or procure employment for any person who is employed by the Company or solicit or induce any employee of the Company to leave his/her employment with the Company; or

(c) solicit, aid or induce any person, firm or company which has been a customer of the Company or was or is in the habit of dealing with the Company, to stop using the services of or dealing with the Company in the manner in which such person, firm or company shall have been previously accustomed,

it being understood that he shall not participate in any vote of the Board with relation to such consent.

Any continuing breach of this non-competition and non-solicitation clause of one month shall be deemed to be a new violation with a new contractual penalty as consequence.

13.5 Costs, Expenses and Taxes

Each Party shall bear its own costs and expenses arising out of or incurred, and any taxes imposed on it, in connection with this Agreement and the transactions contemplated by this Agreement.

13.6 Notices

All notices and other communications made or to be made under this Agreement shall be given in writing but dispatched to the other Parties by e-mail (to the e-mail addresses set forth on the first page of this Agreement, as amended from time to time in accordance with the provisions of this Section 12.6).

13.7 Entire Agreement

With the exception of the convertible loan agreements between the Pre-Seed Investors and the Company and/or between the Seed Investor and the Company, this Agreement constitutes the entire agreement among the Parties with respect to the subject matter hereof and supersedes any agreement or understanding with respect to the subject matter hereof that may have been concluded between any of the Parties prior to the date of this Agreement. The Parties confirm that in addition to this Agreement, there are no side agreements relating to the subject matter hereof between any of them that have not been disclosed to the other Parties and the terms of which may affect any of the rights granted to any of the Parties hereunder.

13.8 Severability

If at any time any provision of this Agreement or any part thereof is or becomes invalid or unenforceable, then neither the validity nor the enforceability of the remaining provisions or the remaining part of the provision shall in any way be affected or impaired thereby. The Parties agree to replace the invalid or unenforceable provision or part thereof by a valid or enforceable provision which shall best reflect the Parties' original intention and shall to the extent possible achieve the same economic result. The same applies *mutatis mutandis* in case of any gaps.

13.9 Amendments

The Parties acknowledge and agree that:

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(a) this Agreement may be amended by an instrument signed by Parties holding more than 90 percent of the Shares with binding effect on all other Parties; *provided*, however, that any such modification or amendment of any of the provisions of this Agreement shall neither affect any accrued rights of any other Party nor impose any greater liability or any more onerous obligation than those contained in this Agreement on the other Parties who do not sign such modification or amendment; and

(b) notwithstanding anything contained in this Agreement to the contrary, this Agreement shall be replaced and superseded by a shareholders agreement in form and substance deemed required or appropriate by each of the Board, the holders of a majority of the issued Shares of the Company and the holders of a majority of the Seed Investor Shares, to facilitate and effect an Approved Financing, and each Shareholder hereby undertakes to the other Shareholders to execute such a shareholders agreement and any ancillary documents (such as an investment and subscription agreement) in form and substance as proposed by the Board.

13.10 Waiver of Rights

No waiver by a Party of a failure of any other Party to perform any provision of this Agreement shall operate or be construed as a waiver in respect of any other or further failure whether of a similar or different character.

14. GOVERNING LAW AND JURISDICTION

14.1 Governing Law

This Agreement shall in all respects be governed by and construed in accordance with substantive Swiss law.

14.2 Jurisdiction

The ordinary courts of Zug (Canton of Zug, Switzerland) shall have exclusive jurisdiction for any and all disputes arising out of or in connection with this Agreement.

* * * * *

[*Signature page to follow*]

IN WITNESS WHEREOF, the Parties have signed this Agreement on the Effective Date

Pre-Seed Investor 1

By: DocuSigned by: Richard Steiblin 0BE9FBEED7774C5...

Names: Richard Steiblin

Titles: Mr

Pre-Seed Investor 2

By: DocuSigned by: Georg Büchel AB257B4EEBC2406...

Names: Georg Büchel

Titles: Mr

Pre-Seed Investor 3

By: DocuSigned by: Josef Büchel 41C277AB5B10458...

Names: Josef Büchel

Titles: Mr

Pre-Seed Investor 4

By: DocuSigned by: 94A1E196A47C4AF...

Names: Loïc Amado

Titles: Mr

Pre-Seed Investor 5

By: DocuSigned by: Nicolas Buteau 9BA03A9FFCC3414...

Names: Nicolas Buteau

Titles: Mr

Pre-Seed Investor 6

By: DocuSigned by: 50AADAB6CEE245E...

Names: Anita Sørlundsengen

Titles: Mr

Pre-Seed Investor 7

By: DocuSigned by: Urs Helfenstein 4A6E35C0281240D...
Names: Urs Helfenstein
Titles: -

Pre-Seed Investor 8

By: DocuSigned by: Franco Bargetze 55A0FA5D6BFA4DA...
Names: Franco Bargetze
Titles: -

Pre-Seed Investor 9

By: DocuSigned by: 3F9A074D79B545C...
Names: Frederik Gerner
Titles: Mr.

Pre-Seed Investor 10

By: DocuSigned by: Ben Willson EB75DA58DC6645E...
Names: Ben Willson
Titles: Mr.

Pre-Seed Investor 11

By: DocuSigned by: Ragna Sørlundsengen 36BEFE4922FB49B...
Names: Ragna Sørlundsengen
Titles: Miss.

Pre-Seed Investor 12

By: DocuSigned by: Maxime Calot E61FA3E3A65A418...
Names: Maxime Calot
Titles: Mr

Pre-Seed Investor 13

By: DocuSigned by: Dominik Kaiser 58754E13AB87430...
Names: Dominik Kaiser
Titles: Mr.

Pre-Seed Investor 14

By: DocuSigned by: Alexander Schärer 29CCBFFE3D2C45B...
Names: Alexander Schärer
Titles: Mr.

Pre-Seed Investor 15

By: DocuSigned by: 262A7F69E482434...
Names: Emilian Popa
Titles: Mr

Pre-Seed Investor 16

By: DocuSigned by: Luca Michas 015B2B17A2D3489...
Names: Luca Michas
Titles: Mr.

Pre-Seed Investor 17

By: DocuSigned by: Deniz Canay 75803E5A3640498...
Names: Deniz Canay
Titles: Mr.

Pre-Seed Investor 18

By: DocuSigned by: Stephan Baumann 7E49BD61E81149E...
Names: Stephan Baumann
Titles: Ph.D.

Pre-Seed Investor 19

By: DocuSigned by: CF11E2535FF1486...
Names: Sandro De Luca
Titles: Managing Partner

Pre-Seed Investor 20

By: DocuSigned by: Simon Hasenfratz 80EAF0FDC27E4A2...
Names: Simon Hasenfratz
Titles: Mr.

Pre-Seed Investor 21

By: DocuSigned by: Dominic Freudensprung C6952632AC7049E...
Names: Dominic Freudensprung
Titles: Mr.

Pre-Seed Investor 22

By: DocuSigned by: Elisabeth Melcher 0798F9E0B864445...
Names: Elisabeth Melcher
Titles: Ms.

Pre-Seed Investor 23

By: DocuSigned by: Lena Melcher 4399A798C9954CE...
Names: Lena Melcher
Titles: Ms.

Pre-Seed Investor 24

By: DocuSigned by: Matthias Wittenberg C89AFF6A9G81434...
Names: Matthias Wittenberg
Titles: Mr.

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Seed Investor 1

By:	DocuSigned by: Rico Viray BF57EB55922242E...	DocuSigned by: 0B39F003FB604BA...
Names:	Rico Viray	Susan Miller
Titles:	Founding Partner	Member of the Board

Existing Shareholder 1

By:	DocuSigned by: 2265D1897FF946F...
Names:	Alfredo Seidemann
Titles:	Member of the Board

Existing Shareholder 2

By:	DocuSigned by: Guido Juan Pablo Dunckel 5EF90D94DFC74CF...
Names:	Guido Juan Pablo Dunckel
Titles:	Member of the Board

Company

By:	DocuSigned by: 2265D1897FF946F...
Names:	Alfredo Seidemann
Titles:	Member of the Board

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Annex A

List of Pre-Seed Investors

Pre-Seed Investors		
Category	**Name**	**Email**
Pre-Seed Investor 1	Richard Steiblin	r.steiblin@breitband.ch
Pre-Seed Investor 2	Georg Büchel	gwbuechel@bluewin.ch
Pre-Seed Investor 3	Josef Büchel	j.buechel@hispeed.ch
Pre-Seed Investor 4	Loic Amado	amadoloic@gmail.com
Pre-Seed Investor 5	Nicolas Buteau	nicolas@yayem.com
Pre-Seed Investor 6	Anita Sorlundsengen	anitabaksor@gmail.com
Pre-Seed Investor 7	Urs Helfenstein	uhelfenstein@gmail.com
Pre-Seed Investor 8	Franco Bargetze	fbargetze@gmail.com
Pre-Seed Investor 9	Frederik Gerner	f.w.b.gerner@gmail.com
Pre-Seed Investor 10	Ben Willson	ben@viatu.com
Pre-Seed Investor 11	Ragna Sørlundsengen	ragnabs@gmail.com
Pre-Seed Investor 12	Maxime Calot	mcalot01@gmail.com
Pre-Seed Investor 13	Dominik Kaiser	dominik14k@gmail.com
Pre-Seed Investor 14	Alexander Schärer	alexander.c.schaerer@gmail.com
Pre-Seed Investor 15	Emilian Popa	emilienpopa@gmail.com
Pre-Seed Investor 16	Luca Michas	luca@yamo.bio
Pre-Seed Investor 17	Deniz Canay	cny.deniz@gmail.com
Pre-Seed Investor 18	Stephan Baumann	hupfpfupf@gmx.ch
Pre-Seed Investor19	Sandro de Luca	sdl@private-market.ch
Pre-Seed Investor 20	Simon Hasenfratz	s_hasenfratz@gmx.ch
Pre-Seed Investor 21	Dominic Freudensprung	dfreudensprung@google.com
Pre-Seed Investor 22	Elisabeth Melcher	e.melcher@hotmail.com
Pre-Seed Investor 23	Lena Melcher	lenamelcher00@gmail.com
Pre-Seed Investor 24	Matthias Wittenberg	matthias.wittenberg@infinitefox.com

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Annex B

List of Seed Investors

Pre-Seed Investors		
Category	**Name**	**Email(s)**
Seed Investor 1	**Ndoto, LLC**, 100 Tournament Drive, Suite #310, Horsham, PA 19044 USA	Reviray@gmail.com; Smillerviray1@gmail.com

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Annex 1

Defined Terms

"**Affiliate**" shall mean any person or entity that directly, or indirectly through one or more intermediaries, controls or is controlled by or is under common control with the person or entity specified.

"**Agreement**" shall mean this shareholders agreement dated as of the date on the cover page, including its annexes, as amended from time to time in accordance with its terms.

"**Annex**" shall mean an annex to this Agreement.

"**Approved Financing**" shall have the meaning set forth in Section 8.

"**Articles**" shall have the meaning set forth in Section 3.

"**Board**" shall mean the board of directors of the Company, as appointed from time to time in accordance with the terms of this Agreement.

"**Board Regulations**" shall have the meaning set forth in Section 3.

"**Business**" shall have the meaning set forth in Recital A.

"**Cap Table**" shall mean **Annex 2**.

"**CEO**" shall mean the Chief Executive Officer of the Company appointed from time to time in accordance with this Agreement and the Board Regulations.

"**Chairman**" shall mean the chairman of the Board (*Verwaltungsratspräsident; président du conseil d'administration*).

"**Change of Control**" shall mean any Transfer of Shares in one or a series of related transactions that results in the proposed acquirer (including a Shareholder) holding, directly or indirectly, more than 50 percent of the then issued share capital of the Company.

"**Common Shares**" shall mean any common registered shares of the Company (*Stammaktien; actions ordinaires*), which do not benefit from preference rights, whether in accordance with the Articles or under this Agreement (for the avoidance of doubt, the Seed Investor Shares shall not be deemed to constitute Common Shares).

"**Company**" shall have the meaning set forth on the front page of this Agreement.

"**Confidential Information**" shall have the meaning set forth in Section 12.3.

"**Convertible Loan Agreement**" shall have the meaning set forth in Recital C.

"**Director**" shall mean each member of the Board appointed from time to time in accordance with the terms of this Agreement.

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"**Distribution**" shall mean any distribution in the form of Dividends and/or proceeds resulting from a Liquidation.

"**Dividend**" shall have the meaning set forth in Section 7.1.

"**Drag-Along Event**" shall have the meaning set forth in Section 9.5.1.

"**Drag-Along Notice**" shall have the meaning set forth in Section 9.5.1.

"**Drag-Along Right**" shall have the meaning set forth in Section 9.5.1.

"**Effective Date**" means the date of this Agreement as set forth on its front page.

"**ESOP**" shall mean on or several employee stock option plans / agreements.

"**Existing Shareholder**" shall have the meaning set forth on the front page of this Agreement.

"**Existing Shareholder Director**" shall have the meaning set forth in Section 4(c).

"**General Meeting of Shareholders**" shall mean any ordinary or extraordinary general meeting of Shareholders of the Company.

"**Important Board Matters**" shall have the meaning set forth in Section 5(b) (as set forth in Part B of **Annex 5**).

"**Important Shareholder Matters**" shall have the meaning set forth in Section 5(a) (as set forth in Part A of **Annex 5**).

"**Investor**" and "**Investors**" shall have the meaning set forth on the front page of this Agreement.

"**Liquidation**" shall mean a voluntary or non-voluntary liquidation, a dissolution or winding up of the Company, a capital decrease or a Sale.

"**Liquidation Preference**" shall have the meaning set forth in Section 7.1.

"**Minority Shareholders**" shall have the meaning set forth in Section 11.1.

"**Party**" shall have the meaning set forth on the front page of this Agreement and any further parties adhering to this Agreement in accordance with its terms.

"**Pre-Seed Investor(s)**" shall have the meaning set forth on the front page of this Agreement.

"**Pre-Seed Investor Mandatory Conversion**" shall have the meaning set forth in Recital B.

"**Preference Amount**" shall mean the sum of the conversion price in the Seed Investor Mandatory Conversion (not accounting for any discount applicable to such mandatory conversion), as applied to the aggregate number of all Seed Investor Shares of a holder of Seed Investor Shares, less any Distributions already received.

"**Recital**" shall mean a recital of this Agreement.

"**Relevant Selling Shareholder(s)**" shall have the meaning set forth in Section 9.5.1.

"**Relevant Shares**" shall have the meaning set forth in Section 9.3.1 and 9.4.1.

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"**Representative**" shall have the meaning set forth in Section 11.1.

"**Right of First Refusal**" shall have the meaning set forth in Section 9.3.1.

"**Right of First Refusal Event**" shall have the meaning set forth in Section 9.3.1.

"**Right of First Refusal Exercise Notice**" shall have the meaning set forth in Section 9.3.2.

"**Right of First Refusal Notice**" shall have the meaning set forth in Section 9.3.1.

"**Sale**" shall mean the Transfer (whether through a single transaction or a series of related transactions) of the Shares that result in a Change of Control or the sale of all or substantially all of the Company's assets.

"**Section**" shall mean a section of this Agreement.

"**Seed Investor**" shall have the meaning set forth on the front page of this Agreement.

"**Seed Investor Director**" shall have the meaning set forth in Section 4(b).

"**Seed Investor Mandatory Conversion**" shall have the meaning set forth in Recital C.

"**Seed Investor Shares**" shall mean common shares (*Stammaktien; actions ordinaires*) as designated in Recital C, which shall have the contractual preferences set forth in this Agreement, it being understood that such contractual preferences shall be deemed and treated by all Parties hereto as if Seed Investor Shares were issued as preference shares (*Vorzugsaktien; actions privilégiées*) and if the contractual preferences were corporate preferences for all purposes and intents of this Agreement.

"**Selling Shareholder(s)**" shall have the meaning set forth in Section 9.3.1 and Section 9.4.1.

"**Shareholder**" shall mean each holder of Shares.

"**Shares**" shall mean any shares from time to time issued by the Company (including, but not limited to Common Shares and Seed Investor Shares).

"**Tag-Along Event**" shall have the meaning set forth in Section 9.4.1.

"**Tag-Along Exercise Notice**" shall have the meaning set forth in Section 9.4.3.

"**Tag-Along Notice**" shall have the meaning set forth in Section 9.4.1.

"**Tag-Along Right**" shall have the meaning set forth in Section 9.4.3.

"**Transfer**" (or "**Transferred**", "**Transferring**" or "**Transferable**") shall mean any sale, assignment, pledge, encumbrance or any other disposal or transfer of Shares by contract, inheritance, court order or by operation of law.

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FINAL VERSION

Annex 2

Cap Table pre Equity Financing

2022 Cap Table Report Updated
Latest cap table (09 Feb 2022)

Viatu AG
c/o XELLENZ Revisionen GmbH
Zweigniederlassung Zug, Neugasse 6
CH–6300 Zug
CHE-496.562.005

	Issued (%)	Diluted (%)	Voting (%)	Diluted shares	Common	Investment (CHF)
Founders	100.00	100.00	100.00	10,000,000	10,000,000	30,000.00
Alfredo Seidemann	65.00	65.00	65.00	6,500,000	6,500,000	10,000.00
Guido Juan Pablo Dunckel	35.00	35.00	35.00	3,500,000	3,500,000	20,000.00

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FINAL VERSION

Annex 3(i)

Articles

Attached.

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Annex 3(ii)

Board Regulations

Attached.

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Annex 5

List of Important Shareholder and Board Matters

Part A – Important Shareholder Matters

Each of the following decisions shall be an Important Shareholder Matter and shall require the consent requirements set forth in Section 5(a) of this Agreement:

(a) any amendment of the Company's Articles or its corporate purpose;

(b) any creation of shares with preferential rights of any kind, shape or form or with privileged voting rights;

(c) any amendment to the restriction of the transferability of Shares;

(d) any authorized or conditional capital increase;

(e) any increase of capital against the Company's equity, against contributions in kind, or for the purpose of acquiring assets or the granting of special benefits;

(f) any limitation or withdrawal of subscription rights;

(g) any change of registered office of the Company;

(h) any sale of all or substantially all of the assets of the Company;

(i) any merger, demerger or similar reorganization of the Company;

(j) the liquidation of the Company;

(k) any resolution on Dividend payments or other distributions to the Shareholders; and

(l) the election of the auditors of the Company.

Part B – Important Board Matters

Each of the following decisions shall be an Important Board Matter and shall require the consent requirements set forth in Section 5(b) of this Agreement:

(a) the approval of the budget, and any change thereto;

(b) the sale, disposal or transfer of all or substantially all of the Company's business and/or assets;

(c) any acquisition of a business or any part thereof (whether a share or asset transaction);

(d) any investment, capital expenditure, sale of assets, incurrence of debt or any contract obligation by the Company in excess of CHF 150,000 (whether by a single transaction or a series of related transactions) unless such expenditure has been specifically provided for in the budget;

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(e) any Approved Financing including any agreements to facilitate and effect an Approved Financing;

(f) the appointment and removal of the Company's CEO and all other members of the management;

(g) the approval and amendment of any share option plan and option and/or share grants to the management, the issuance of shares or equity-related securities out of the Company's authorized or conditional share capital (including the determination of the issue price, the date for the entitlement for dividends and the type of contribution therefore), except in respect to any Shares issued in accordance with the Anti-Dilution Adjustments;

(h) the creation of any security interests upon any part of the Company's property or assets in any form whatsoever exceeding CHF 150,000 in aggregate (whether by a single transaction or by a series of related transactions) save as set forth in the budget or in the ordinary course of business;

(i) any related-party transactions or arrangements including variations thereof;

(j) any material change in accounting policies or principles save with the prior approval of the Company's audit company;

(k) any Transfer of Shares other than in accordance with Section 9 of this Agreement; and

any amendment or modification of the Board Regulations.

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Statuten der

Viatu AG

mit Sitz in Zug

Articles of Association of

Viatu AG

with seat in Zug

Vorbemerkung: Die englische Fassung dient lediglich der Information und entfaltet keinerlei rechtliche Wirkung.

Preliminary remark: The English version is for information purposes only and has no legal effect.

Artikel 1 – Firma und Sitz

Unter der Firma Viatu AG besteht mit Sitz in Zug, Kanton Zug auf unbestimmte Dauer eine Aktiengesellschaft gemäss Art. 620 ff. des Schweizerischen Obligationenrechts (OR).

Article 1 – Name and Seat

Under the name Viatu AG *a corporation pursuant to Art. 620 et seq. of the Swiss Code of Obliations (CO) exists with its registered office in Zug, Canton of Zug, for an indefinite period of time.*

Artikel 2 – Zweck

Die Gesellschaft bezweckt den Betrieb einer Technologie- und Marketingplattform im Zusammenhang mit Tourismusprodukten aller Art. Die Gesellschaft kann alle Geschäfte tätigen, die mit diesem Hauptzweck in Verbindung stehen.

Die Gesellschaft kann sowohl auf eigene als auch auf Rechnung Dritter alle finanziellen, gewerblichen und industriellen Tätigkeiten vornehmen, die direkt oder indirekt mit dem Unternehmenszweck zusammenhängen.
Sie kann sich an anderen Unternehmen beteiligen und Niederlassungen und Tochtergesellschaften im In- und Ausland errichten. Sie kann Immobilien und Immaterialgüterrechte erwerben, halten und veräußern.

Article 2 - Purpose

The purpose of the company is to to operate a technology and marketing platform in connection with tourism products of all kinds. The company may conduct any business related to this primary purpose.

The company may, for its own account as well as for the account of third parties, engage in any financial, commercial or industrial activity directly or indirectly related to the object of the company.
It may invest in other companies and set up branches and subsidiaries in Switzerland and abroad. It may acquire, hold and dispose of real estate and intellectual property rights.

Artikel 3 – Aktienkapital

Das Aktienkapital beträgt CHF 100'000.00 und ist eingeteilt in 10'000'000 Namenaktien mit einem Nennwert von je CHF 0.01 (Stammaktien).

Die Stammaktien sind zu 50% liberiert.

Article 3 - Share Capital

The share capital amounts to amounts to CHF 100'000.00 and is divided into 10'000'000 registered shares with a nominal value of CHF 0.01 (common shares) each.

The common shares are 50% paid up.

Artikel 4 – Aktien
Die Generalversammlung kann durch Statutenänderung jederzeit Aktien in solche von kleinerem Nennwert zerlegen oder zu solchen von grösserem Nennwert zusammenlegen, wobei letzteres die Zustimmung des Aktionärs braucht.

Article 3 - Shares
By amending the articles of association, the general meeting of shareholders may at any time split shares into smaller par value shares or merge them into larger par value shares, whereby the latter requires the approval of the shareholders.

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Artikel 5 – Form der Aktien

Die Namenaktien der Gesellschaft werden vorbehältlich des folgenden Absatzes als Wertrechte im Sinne des Schweizerischen Obligationenrechts ausgestaltet.

Der Aktionär kann, nachdem er im Aktienbuch eingetragen ist, von der Gesellschaft jederzeit die Ausstellung einer Bescheinigung über seine Namenaktien verlangen; er hat jedoch keinen Anspruch auf Druck und Auslieferung von Aktienurkunden. Die Gesellschaft kann demgegenüber jederzeit Urkunden (Einzelurkunden oder Zertifikate über mehrere Aktien) ausstellen und ausliefern.

Als Wertrechte ausgegebene Aktien können vom Verwaltungsrat vertraglich mit Token (wie beispielsweise mit ERC20-Token), basierend auf einer Distributed Ledger-Technologie (DLT), verknüpft werden. Die Gesellschaft trägt die Kosten für die Umwandlung und Verknüpfung.

Article 5 – Form of Shares

Subject to the following paragraph, the registered shares of the company shall be structured as book-entry securities within the meaning of the Swiss Code of Obligations.

After being entered in the share register, the shareholder may at any time request the company to issue a document of proof confirming his registered shares; however, he has no right to demand the printing and delivery of share certificates. The company may, however, issue and deliver certificates (certificates for individual shares or certificates for several shares) at any time.

Shares issued as book-entry securities may be contractually linked by the board of directors to tokens (such as ERC20 tokens) based on a distributed ledger technology (DLT). The company bears the costs for the conversion and linking. Shareholders have no right to demand that issued shares be converted into another form.

Artikel 6 – Aktienbuch

Die Gesellschaft führt ein Aktienbuch, das zusammen mit weiteren Informationen, welche unter den vorliegenden Statuten oder vom Verwaltungsrat benötigt werden, die Namen und Adressen der Eigentümer oder Nutzniesser der Aktien aufführt.

Gegenüber der Gesellschaft gelten diejenigen Personen als Eigentümer oder Nutzniesser, die im Aktienbuch eingetragen sind.

Erwerber von Aktien werden als Aktionäre in das Aktienbuch eingetragen, wenn sie gemäss den Vorschriften der Gesellschaft bestätigen, dass sie die so erworbenen Aktien im eigenen Namen und auf eigene Rechnung halten. Die Gesellschaft darf jederzeit von einem Aktionär verlangen, diese Bestätigung zu wiederholen.

Article 6 – Share Register

The company shall keep a share register, which shall contain the names and addresses of the owners or usufructaries of the shares, together with the other information required under these articles of association or by the board of directors.

The company recognizes as shareholders the persons who are recorded in the company's share register as the owners or usufructaries of shares.

Persons having acquired shares of the company will be recorded in the company's share register as shareholders, provided that they confirm in the manner specified by the company that they are holding the shares so acquired in their own name and for their own account. The company may ask a shareholder to repeat that confirmation at any time.

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Nach Anhörung der betroffenen Person darf die Gesellschaft den Eintrag eines Aktionärs im Aktienbuch für einen Teil oder die Gesamtheit der von diesem gehaltenen Aktien rückwirkend löschen, wenn der Eintrag aufgrund falscher Angaben des Erwerbers getätigt wurde oder wenn dieser sich weigert auf Anfrage zu bestätigen, dass er die Aktien im eigenen Namen und auf eigene Rechnung hält. Der betroffene Aktionär wird von der Löschung im Aktienbuch informiert.

After having heard the relevant person, the company may cancel the registration of a shareholder from the share register with retroactive effect with respect to some or all of such shareholder's shares if the registration in the share register turns out to have been made on the basis of inaccurate information provided by the shareholder or if the relevant shareholder refuses, upon request, to confirm that he holds the relevant shares in its own name or for its own account. The relevant shareholder is informed of the cancellation.

Der Verwaltungsrat kann die Modalitäten der Aktienübertragung und der Eintragung in das Aktienbuch reglementieren.

The board of directors may adopt regulations on the transfer of shares and their registration in the company's share register.

Artikel 7 – Übertragung der Aktien

Article 7 – Transfer of Shares

Die Übertragung der Namenaktien oder die Begründung einer Nutzniessung an den Namenaktien bedarf der Genehmigung durch den Verwaltungsrat.

The transfer of the registered shares or the establishment of a usufruct to the registered shares requires the approval of the board of directors.

Der Verwaltungsrat kann die Eintragung ins Aktienbuch verweigern, sofern der Erwerber nicht ausdrücklich erklärt, die Aktien in eigenem Namen und für eigene Rechnung erworben zu haben.

The board of directors may refuse entry in the share register if the purchaser does not expressly declare that he has acquired the shares in his own name and for his own account.

Der Verwaltungsrat kann die Zustimmung und die Eintragung ins Aktienbuch delegieren.

The board of directors may delegate approval and entry in the share register.

Artikel 8 – Einberufung der Generalversammlung

Article 8 – Convocation of the General Meeting of Shareholders

Die Generalversammlung ist spätestens 20 Tage vor dem Versammlungstag durch Brief oder E-Mail an die Aktionäre und Nutzniesser einzuberufen.

The general meeting must be convened by letter or e-mail to shareholders and usufructuaries no later than 20 days before the date of the meeting.

Artikel 9 – Verwaltungsrat

Article 9 – Board of Directors

Der Verwaltungsrat der Gesellschaft besteht aus einem oder mehreren Mitgliedern.

The board of directors of the company consists of one or more members.

Der Verwaltungsrat ist ermächtigt, die Geschäftsführung ganz oder teilweise an einzelne Mitglieder oder an Dritte zu übertragen.

The board of directors is authorized to delegate the management of the company in whole or in part to individual members or third parties.

Beschlüsse des Verwaltungsrates werden mit einfachem Mehr gefasst. Der Vorsitzende hat den Stichentscheid.

Resolution of the board of directors shall be adopted by a simple majority. The chairman has the casting vote.

Für den Beschluss des Verwaltungsrates zur Feststellung durchgeführter Kapitalerhöhungen genügt die Anwesenheit eines Mitgliedes des Verwaltungsrates.

The presence of one member of the board of directors shall be sufficient for the board of directors to pass a resolution confirming the capital increases carried out.

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Beschlüsse des Verwaltungsrates können, soweit das Gesetz und die Statuten es nicht anders bestimmen, auch schriftlich (einschliesslich E-Mail, Telefax oder in einer anderen Form der Übermittlung, die den Nachweis des Beschlusses durch Text ermöglicht), gefasst werden, sofern nicht ein Mitglied die mündliche Beratung verlangt.

Unless otherwise provided by law or the articles of association, resolutions of the board of directors may also be passed in writing (including by e-mail, fax or any other form of transmission that allows the resolution to be evidenced by text), unless a member requests oral deliberation.

Artikel 10 – Revisionsstelle

Die Generalversammlung wählt eine Revisionsstelle für die Dauer eines Jahres.

Sie kann auf die Wahl einer Revisionsstelle verzichten, in Abwesenheit anderslautender Beschlüsse gilt der Verzicht auch für die nachfolgenden Jahre.

Article 10 - Auditor

The general meeting elects an auditor for a period of one year.

It may waive the election of an auditor; in the absence of resolutions to the contrary, the waiver shall also apply for subsequent years.

Artikel 11 – Geschäftsjahr

Der Verwaltungsrat bestimmt den Beginn und das Ende des Geschäftsjahres.

Article 11 – Financial Year

The board of directors sets the beginning and end of the financial year.

Artikel 12 – Mitteilungen und Bekanntmachungen

Mitteilungen an die Aktionäre erfolgen per Brief oder E-Mail an die im Aktienbuch verzeichneten Adressen.

Publikationsorgan der Gesellschaft ist das Schweizerische Handelsamtsblatt.

Article 12 – Communications and Notices

Notices to shareholders shall be sent by letter or e-mail to the addresses recorded in the share register.

The means of publication of the company is the Swiss Official Gazette of Commerce.

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BOARD REGULATIONS

of

Viatu AG

with registered offices in Zug
("**Company**")

1 SCOPE

The business of the Company shall be conducted in accordance with Swiss law, the articles of association (the "**Articles**") of the Company and these board regulations (the "**Regulations**").

The Regulations have been adopted by the board of directors (the "**Board**", its members each a "**Director**") in accordance with art. 716b para. 2 of the Swiss Code of Obligations (CO) and the Articles.

These Regulations determine the organization as well as the duties and competences of the executive bodies of the Company and the delegation of duties and competences to the management of the Company (the "**Management**").

2 EXECUTIVE BODIES

The executive bodies of the Company are:

a) the Board; and

b) the Management.

3 THE BOARD OF DIRECTORS

3.1 ORGANIZATION

The Board shall determine its own organization. It shall appoint its chairman and, as required, its vice-chairman from among its members for one-year tenures.

The Board may appoint a secretary who need not be a Director or a shareholder of the Company.

3.2 DUTIES AND POWERS

The Board is responsible for the overall management of the Company (*Oberleitung*) and for the supervision and control of the Management.

The Board has the non-transferrable and inalienable duties and powers as per the statutory law, as amended from time to time. A list of such current duties and powers is attached hereto for informational purposes only as Annex 1 (List of Non-Transferable Duties of the Board of Directors).

Subject to mandatory law and unless the Regulations or the Articles provide otherwise, the Board may delegate any tasks not listed in Annex 1 to the Management.

3.3 MEETINGS

The Board shall meet as often as business of the Company requires.

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The meeting shall be convened by the chairman or, in his absence, by the vice-chairman or another Director. Each Director is entitled to demand in writing (including electronic form) that a meeting be convened, stating the items on the agenda.

The notice of any board meeting shall be dispatched in writing (including electronic form) not less than ten (10) calendar days prior to the date of the meeting and specify the place, date and time of the meeting as well as the agenda. Such advance notice may be reasonably shortened in case urgent matters require an earlier or immediate meeting.

Meetings may also be held by video or telephone conference or other means of direct communication, unless the majority of the Directors requests deliberation in a meeting.

3.4 QUORUM OF ATTENDANCE

A board meeting is validly constituted, if a majority of the Directors (including, if applicable, the Seed Investor Director as defined in the shareholders' agreement), is present (including by video or telephone conference or other means of direct communication).

If the quorum of attendance set forth in the preceding paragraph is not met upon first invitation, the Board meeting shall be postponed and called again with at least 5 (five) calendar days prior written invitation and such second meeting shall take place at the same place and time and on the same weekday two weeks after the meeting date specified in the first invitation unless otherwise agreed by all Directors. In such second meeting, the Board meeting shall be validly constituted if at least 2 (two) Directors are present (including by telephone, video or computer conference or other means of direct communication) and the Board may pass resolutions on the agenda items that have already been put on the agenda distributed to the Directors together with the first invitation, subject to the approval requirements set forth in Section 3.5.

No quorum requirement applies for meetings at which the Board confirms the execution of a capital increase and resolves on changes of the Articles in connection with a share capital increase resolved by the General Meeting of Shareholders (in particular art. 634a, 651 para. 4, 651a, 652e, 652g and 653g CO).

3.5 RESOLUTIONS

Except as set out below, the Board shall adopt its resolutions by simple majority of the votes of the Directors present. In the event of equality of votes cast, the chairman shall have the casting vote.

In addition, decisions and actions concerning important matters as set out below (regardless on which level or by which body such decisions are formally adopted) require the prior approval of (i) the simple majority of the Directors present at the meeting and (ii) after a Seed Investor Mandatory Conversion (as defined in the shareholders' agreement, if any) the Seed Investor Director (as defined in the shareholders' agreement), subject to mandatory law:

a) the approval of the budget or the business plan, and any change thereto;

b) the sale, disposal or transfer of all or substantially all of the Company's business and/or assets;

c) any acquisition of a business or any part thereof (whether a share or asset transaction);

d) any investment, capital expenditure, sale of assets, incurrence of debt or any contract obligation by the Company in excess of CHF 150'000 (whether by a single transaction or a series of related transactions) unless such expenditure has been specifically provided for in the budget;

e) any Approved Financing (as defined in the Shareholders Agreement) including any agreements to facilitate and effect an Approved Financing;

f) the appointment and removal of the Company's CEO and all other members of the management;

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g) the approval and amendment of any share option plan and option and/or share grants to the Management [, the issuance of shares or equity-related securities out of the Company's authorized or conditional share capital (including the determination of the issue price, the date for the entitlement for dividends and the type of contribution therefore), except in respect to any shares issued in accordance with anti-dilution adjustments;

h) the creation of any security interests upon any part of the Company's property or assets in any form whatsoever exceeding CHF 150'000 in aggregate (whether by a single transaction or by a series of related transactions) save as set forth in the budget or business plan or in the ordinary course of business;

i) any related-party transactions or arrangements including variations thereof;

j) any material change in accounting policies or principles save with the prior approval of the Company's audit company;

k) any transfer of shares other than in accordance with the transfer restrictions set forth in the Shareholders Agreement; and

l) any amendment or modification of the Board Regulations.

3.6 MINUTES

The resolutions of the Board shall be recorded in minutes. Upon request by a Director, the deliberations which led to the decisions shall also be recorded in the minutes, as well as the differing opinions and the voting behavior of the Directors.

The minutes shall be signed (electronic signature) by the chairman of the meeting and its secretary.

3.7 CIRCULAR RESOLUTIONS

Resolutions can also be taken by way of circular resolution (including electronic form), unless a Director requests in writing (including electronic form) within 2 calendar days upon receipt of such proposed resolutions, that the items be discussed at a meeting.

A circular resolution is valid if approved by the majority of all Directors.

3.8 INFORMATION

Any Director may request information about all matters concerning the Company.

At meetings, all persons engaged in the management of the Company shall be required to provide the information requested. Outside meetings, each Director has the right to request information from the Management regarding the general business affairs and, with the approval of the chairman, also regarding particular business transactions.

3.9 REMUNERATION

The Board shall determine the remuneration of its members.

Upon presentation of appropriate receipts, the Directors are entitled to reimbursement for all business expenses, including costs incurred as a result of attending meetings of the Board activities for the Company.

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4 MANAGEMENT

4.1 DELEGATION

The management of the Company shall be delegated to the Management to the extent a certain duty is not by law, the Articles or these Regulations reserved to the Board. Without limiting the generality of the foregoing, the Management shall implement the business policies of the Company, establish the business plan under the Board's supervision and control, and manage the day-to-day business of the Company.

4.2 ORGANIZATION

The Management shall be headed by a CEO and shall include any other officers as the Board may determine from time to time.

4.3 REPORTING TO THE BOARD OF DIRECTORS

The members of the Management shall, as a rule, report to the CEO.

At each meeting of the Board, the CEO, or, if so required by the Board, any member of the Management, shall inform the Board on the state of affairs of the Company so as to allow the Board to comply with its statutory duty to ultimately manage and supervise the Company. If deemed necessary or appropriate, the CEO or the Board may request the participation of other officers.

At any time, the CEO shall report without delay to the Board all significant changes, developments and events affecting the business of the Company.

5 GENERAL PROVISIONS

5.1 SIGNATORY POWER

The Directors have joint signatory power by two. All other persons empowered with the representation of the Company shall have joint signatory power by two. Subject to special powers of attorney granted by the Board from time to time on a case-by-case basis, the Board shall not grant individual signing authorities to members of the Board or the Management.

5.2 CONFLICTS OF INTEREST

Each Director or member of the Management shall disclose to the Board any (potential) conflict of interest as soon as he/she becomes aware of such (potential) conflict of interest's existence.

Members of the Board and members of the Management shall abstain from voting and acting on matters or transactions in which they have a conflict of interest (with their personal interests or the interests of individuals or entities related to them). In case of a permanent conflict of interest, they shall resign from their position as members of the Board or the Management.

Any agreement between the Company and a Director (or his/her related parties) and any agreement between the Company and a third party in which a Director (or his/her related parties) may have specific interest, whether directly or indirectly, requires prior approval of the Board.

5.3 CONFIDENTIALITY

The Board shall ensure that appropriate technical and organizational measures are implemented to safeguard the confidential information of the Company.

The members of the Board and the Management shall keep the terms of the Regulations and any information relating to the Company in general and its business in particular strictly confidential.

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The duty of confidentiality shall continue to be in effect after the termination of the mandate, or employment, respectively, of the members of the Board and the Management. Records containing information subject to the duty of confidentiality shall be returned to the Company upon termination of the mandate/employment at the latest or shall be destroyed

6 EFFECTIVENESS

These Regulations were resolved upon by the Board by resolution dated [date]. They enter into force on [date] and replace all previous organisational regulations.

_____

Place, Date

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ANNEX 1: LIST OF NON-ALIENABLE DUTIES

The Board is responsible for the overall management of the Company and for the supervision and control of the management. The Board performs the following non-transferable and inalienable duties:

a) overall management ("*Oberleitung*") of the Company and the issuance of the necessary instructions;

b) determination of the organization and, in particular, adoption and amendment of these board regulations;

c) structuring of accounting, financial control and financial planning;

d) appointment and dismissal of the members of the management and representation of the Company and the regulation of signing authority;

e) overall supervision of the management, in particular with regard to compliance with the law, the articles of association, regulations and directives;

f) preparation of the annual report, the preparation of the general meeting and the execution of its resolutions;

g) notification of the judge in case of over-indebtedness;

h) resolution on the subsequent payment of contributions on shares not fully paid up;

i) resolution on the increase of the share capital and the corresponding amendments to the articles of association;

j) conclusion of contracts pursuant to the Swiss Mergers Act.

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AMENDMENT AGREEMENT NO. 1

The Parties agree to the following amendment to the Base Agreement with effect on the Effective Date.

Variable	Value
Borrower	**Viatu AG**, c/o XELLENZ Revisionen GmbH, Neugasse 6, 6300 Zug, CHE-496.562.005.
Lenders	All Pre-Seed Investors listed in Annex A. (Borrower and Lenders together the "**Parties**")
Base Agreement	The individual convertible loan agreement between Borrower and Lenders.
Effective Date	Date of signature.
Amendment	Borrower is about to sign additional convertible loan agreements with seed investors. To ensure efficient and uniform conversion of all loans in the event of Maturity, the Maturity Dates according to Section A of the individual Base Agreements are to be aligned. The Parties agree that the Maturity Date in the Base Agreement shall be adjusted with this Amendment Agreement so that it is the same as for the Seed Investors (but in no case later than 31 March 2024). Borrower will provide this date to Lenders once agreed.

Except as set out in this amendment agreement, the Base Agreement is unaffected and shall continue in full force and effect in accordance with its terms.

Annex A

List of Pre-Seed Investors

Pre-Seed Investors		
Category	**Name**	**Email**
Pre-Seed Investor 1	Richard Steiblin	r.steiblin@breitband.ch
Pre-Seed Investor 2	Georg Büchel	gwbuechel@bluewin.ch
Pre-Seed Investor 3	Josef Büchel	j.buechel@hispeed.ch
Pre-Seed Investor 4	Loic Amado	amadoloic@gmail.com
Pre-Seed Investor 5	Nicolas Buteau	nicolas@yayem.co
Pre-Seed Investor 6	Anita Sorlundsengen	anitabaksor@gmail.com
Pre-Seed Investor 7	Urs Helfenstein	uhelfenstein@gmail.com
Pre-Seed Investor 8	Franco Bargetze	fbargetze@gmail.com
Pre-Seed Investor 9	Frederik Gerner	f.w.b.gerner@gmail.com
Pre-Seed Investor 10	Ben Willson	ben@viatu.com
Pre-Seed Investor 11	Ragna Sørlundsengen	ragnabs@gmail.com
Pre-Seed Investor 12	Maxime Calot	mcalot01@gmail.com
Pre-Seed Investor 13	Dominik Kaiser	dominik14k@gmail.com
Pre-Seed Investor 14	Alexander Schärer	alexander.c.schaerer@gmail.com
Pre-Seed Investor 15	Emilian Popa	emilienpopa@gmail.com
Pre-Seed Investor 16	Luca Michas	luca@yamo.bio
Pre-Seed Investor 17	Deniz Canay	cny.deniz@gmail.com
Pre-Seed Investor 18	Stephan Baumann	hupfpfupf@gmx.ch
Pre-Seed Investor 19	Sandro de Luca	sdl@private-market.ch
Pre-Seed Investor 20	Simon Hasenfratz	s_hasenfratz@gmx.ch
Pre-Seed Investor 21	Dominic Freudensprung	dfreudensprung@google.com
Pre-Seed Investor 22	Elisabeth Melcher	e.melcher@hotmail.com
Pre-Seed Investor 23	Lena Melcher	lenamelcher00@gmail.com
Pre-Seed Investor 24	Matthias Wittenberg	matthias.wittenberg@infinitefox.com

SIGNATURES

Pre-Seed Investor 1

By: DocuSigned by: Richard Steiblin 0BE9FBEED7724C5...

Names: Richard Steiblin

Titles: Mr

Pre-Seed Investor 2

By: DocuSigned by: Georg Büchel AB257B4EEBC2403...

Names: Georg Buchel

Titles: Mr

Pre-Seed Investor 3

By: DocuSigned by: Josef Büchel 41C277AB3B10438...

Names: Josef Buchel

Titles: Mr

Pre-Seed Investor 4

By: DocuSigned by: 9A1E196A47C4AF...

Names: Loïc Amado

Titles: Mr

Pre-Seed Investor 5

By: DocuSigned by: Nicolas Buteau B6A03A9FCC3414...

Names: Nicolas Buteau

Titles: Mr

Pre-Seed Investor 6

By: DocuSigned by: 50AADAB6CEE245E...

Names: Anita Sorlundsengen

Titles: Mr

Pre-Seed Investor 7

By: DocuSigned by: Urs Helfenstein 4A8E33C028128B...

Names: Urs Helfenstein

Titles: -

Pre-Seed Investor 8

By: DocuSigned by: Franco Bargetze 55A0FA5D6BFA4DA...

Names: Franco Bargetze

Titles: -

Pre-Seed Investor 9

By: DocuSigned by: 3F3A674D73B545C...

Names: Frederik Gerner

Titles: Mr.

Pre-Seed Investor 10

By: DocuSigned by: Ben Willson EB75DA58DC8645E...

Names: Ben Willson

Titles: Mr.

Pre-Seed Investor 11

By: DocuSigned by: Ragna Sørlundsengen 36BEFE4922FB49B...

Names: Ragna Sørlundsengen

Titles: Miss.

Pre-Seed Investor 12

By: DocuSigned by: Maxime Calot E61FA3E3A65A418...

Names: Maxime Calot

Titles: Mr

Pre-Seed Investor 13

By: DocuSigned by: Dominik Kaiser 5875AE13AB67430...

Names: Dominik Kaiser

Titles: Mr.

Pre-Seed Investor 14

By: DocuSigned by: Alexander Schärer 29CCBFFE3D2C458...

Names: Alexander Schärer

Titles: Mr.

Pre-Seed Investor 15

By: DocuSigned by: 26BA7F6E482434...

Names: Emilian Popa

Titles: Mr

Pre-Seed Investor 16

By: DocuSigned by: Luca Michas 015B2B17A2D3489...
Names: Luca Michas
Titles: Mr.

Pre-Seed Investor 17

By: DocuSigned by: Deniz Canay 75803E5A3640498...
Names: Deniz Canay
Titles: Mr.

Pre-Seed Investor 18

By: DocuSigned by: Stephan Baumann 7E40BD84E8144CE...
Names: Stephan Baumann
Titles: Ph.D.

Pre-Seed Investor 19

By: DocuSigned by: CF11E2535FF1486...
Names: Sandro De Luca
Titles: Managing Partner

Pre-Seed Investor 20

By: DocuSigned by: Simon Hasenfratz 60EAF0FDC27E4A2...
Names: Simon Hasenfratz
Titles: Mr.

Pre-Seed Investor 21

By: DocuSigned by: Dominic Freudensprung C695263 2A0 7049E...

Names: Dominic Freudensprung

Titles: Mr.

Pre-Seed Investor 22

By: DocuSigned by: Elisabeth Melcher 078BF9E0B064445...

Names: Elisabeth Melcher

Titles: Ms.

Pre-Seed Investor 23

By: DocuSigned by: Lena Melcher 4399A798C9954CE...

Names: Lena Melcher

Titles: Ms.

Pre-Seed Investor 24

By: DocuSigned by: Matthias Wittenberg C89AFE8A9G81434...

Names: Matthias Wittenberg

Titles: Mr.

Company

By: DocuSigned by: Guido Juan Pablo Dunckel 5EF90D94DFC74CF...

Names: Alfredo Seidemann Guido Juan Pablo Dunckel

Titles: Member of the Board

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Annex 1: Defined Terms

"**Agreement**" means this conversion and subscription agreement.

"**Annex**" means any annex to this Agreement.

"**Application**" means the application to be filed with the Register of Commerce of the Canton of Zug regarding (i) the increase of the share capital of the Company to reflect the Capital Increase.

"**Capital Increase**" has the meaning set forth in Preamble D.

"**Closing Date**" has the meaning set forth in Section 3.1.

"**Closing**" means the closing of the Capital Increase as set forth in Section 3.

"**Company**" as the meaning set forth on the front page of this Agreement.

"**Confidential Information**" has the meaning set forth in Section 5.2.

"**Converted Agio**" has the meaning set forth in Section 2.2.2a.

"**Convertible Loan Agreement(s)**" has the meaning set forth in Preamble C.

"**Convertible Loan(s)**" has the meaning set forth in Preamble C.

"**Existing Shareholders**" has the meaning set forth on the front page of this Agreement.

"**Extraordinary General Meeting**" has the meaning set forth in Section 2.1.2.

"**Full Consummation**" means that the Seed Investor Shares issued in connection with the Capital Increase have been registered in the commercial register in accordance with Section 3.2.

"**Individual Subscription Amount**" has the meaning set forth in Section 2.2.1.

"**Issue Price**" has the meaning set forth in Section 2.1.1.

"**Nominal Amount**" has the meaning set forth in Section 2.2.2.

"**Party**" or "**Parties**" as the meaning set forth on the front page of this Agreement.

"**Preamble**" means a preamble of this Agreement.

"**Section**" means a section of this Agreement.

"**Seed Investors**" has the meaning set forth on the front page of this Agreement.

"**Seed Investor Shares**" has the meaning set forth in Preamble D.

"**SHA**" has the meaning set forth in Preamble D.

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Annex 2.1.2: Articles of Association

{*attached*}

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Statuten

der

Viatu AG

(Viatu SA) (Viatu Ltd)

mit Sitz in Zug

Artikel 1 – Firma und Sitz

Unter der Firma **Viatu AG** (Viatu SA) (Viatu Ltd) besteht mit Sitz in Zug, Kanton Zug auf unbestimmte Dauer eine Aktiengesellschaft gemäss Art. 620 ff. OR.

Artikel 2 – Zweck

Die Gesellschaft bezweckt den Betrieb einer Technologie- und Marketingplattform im Zusammenhang mit Tourismusprodukten aller Art. Die Gesellschaft kann alle Geschäfte tätigen, die mit diesem Hauptzweck in Verbindung stehen. Die Gesellschaft kann sowohl auf eigene als auch auf Rechnung Dritter alle finanziellen, gewerblichen und industriellen Tätigkeiten vornehmen, die direkt oder indirekt mit dem Unternehmenszweck zusammenhängen. Sie kann sich an anderen Unternehmen beteiligen und Niederlassungen und Tochtergesellschaften im In- und Ausland errichten. Sie kann Immobilien und Immaterialgüterrechte erwerben, halten und veräussern. In der Verfolgung ihres Zwecks erzielt die Gesellschaft durch ihre Geschäftstätigkeit eine erheblich positive Wirkung auf das Gemeinwohl sowie die Umwelt.

Artikel 3 – Aktienkapital und Aktien

Das Aktienkapital beträgt CHF 157'568.83 und ist eingeteilt in 15'756'883 Namenaktien mit einem Nennwert von CHF 0.01 pro Aktie.

Die Namenaktien sind zu CHF 107'568.83 liberiert.

Artikel 4 – Form der Aktien

Die Namenaktien der Gesellschaft werden vorbehältlich des folgenden Absatzes als Wertrechte im Sinne von Art. 973c OR ausgestaltet.

Der Aktionär kann, nachdem er im Aktienbuch eingetragen ist, von der Gesellschaft jederzeit die Ausstellung einer Bescheinigung über seine Namenaktien verlangen; er hat jedoch keinen Anspruch auf Druck und Auslieferung von Aktienurkunden.

Der Verwaltungsrat kann die Verbriefungsart der Namenaktien jederzeit ändern und zwischen Registerwertrechten, Wertpapieren, Globalurkunden und einfachen Wertrechten wechseln.

Der Verwaltungsrat kann ferner die bei der Gesellschaft oder einer Verwahrungsstelle eingelieferten Wertpapiere, Aktienzertifikate oder Globalurkunden oder die als einfache Wertrechte oder

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Registerwertrechte ausgestalteten Aktien als Bucheffekten eintragen lassen. Der Verwaltungsrat kann als Bucheffekten geführte Aktien jederzeit wieder aus dem Verwahrungssystem zurückziehen.

Verfügungen über Bucheffekten erfolgen ausschliesslich nach Massgabe des Bucheffektengesetzes.

Auf Registerwertrechte finden die jeweils gültigen Registrierungsbedingungen Anwendung.

Als Wertrechte ausgegebene Aktien können vom Verwaltungsrat vertraglich mit Token (wie beispielsweise mit ERC20-Token), basierend auf einer Distributed Ledger-Technologie (DLT), verknüpft werden. Die Gesellschaft trägt die Kosten für die Umwandlung und Verknüpfung.

Artikel 5 – Aktienbuch

Die Gesellschaft führt ein Aktienbuch, das zusammen mit weiteren Informationen, welche unter den vorliegenden Statuten oder vom Verwaltungsrat benötigt werden, die Namen und Adressen der Eigentümer oder Nutzniesser der Aktien aufführt.

Gegenüber der Gesellschaft gelten diejenigen Personen als Eigentümer oder Nutzniesser, die im Aktienbuch eingetragen sind.

Erwerber von Aktien werden als Aktionäre in das Aktienbuch eingetragen, wenn sie gemäss den Vorschriften der Gesellschaft bestätigen, dass sie die so erworbenen Aktien im eigenen Namen und auf eigene Rechnung halten. Die Gesellschaft darf jederzeit von einem Aktionär verlangen, diese Bestätigung zu wiederholen.

Nach Anhörung der betroffenen Person darf die Gesellschaft den Eintrag eines Aktionärs im Aktienbuch für einen Teil oder die Gesamtheit der von diesem gehaltenen Aktien rückwirkend löschen, wenn der Eintrag aufgrund falscher Angaben des Erwerbers getätigt wurde oder wenn dieser sich weigert auf Anfrage zu bestätigen, dass er die Aktien im eigenen Namen und auf eigene Rechnung hält. Der betroffene Aktionär wird von der Löschung im Aktienbuch informiert.

Der Verwaltungsrat kann die Modalitäten der Aktienübertragung und der Eintragung in das Aktienbuch reglementieren.

Artikel 6 – Übertragung der Aktien

Die Übertragung der Namenaktien oder die Begründung einer Nutzniessung an den Namenaktien bedarf der Genehmigung durch den Verwaltungsrat.

Der Verwaltungsrat darf die Zustimmung unter Nennung des Grundes verweigern, wenn die Anerkennung des Erwerbers als Aktionär die Gesellschaft daran hindern könnte, durch Bundesgesetze geforderte Nachweise über die Zusammensetzung des Kreises der Aktionäre zu erbringen und wenn durch die Veräusserung der Aktien die Weiterverfolgung des Gesellschaftszwecks im Sinne von Art. 2 dieser Statuten gefährdet werden könnte, insbesondere, wenn der Erwerber direkt oder indirekt in einem Konkurrenzverhältnis zur Gesellschaft steht.

Der Verwaltungsrat kann das Gesuch um Zustimmung zudem ablehnen, wenn er im Namen der Gesellschaft dem Veräusserer der Aktien anbietet, die Aktien für deren Rechnung, für Rechnung anderer Aktionäre oder für Rechnung Dritter zum wirklichen Wert im Zeitpunkt des Gesuches zu übernehmen oder wenn der Erwerber nicht ausdrücklich erklärt, dass er die Aktien im eigenen Namen und auf eigene Rechnung erworben hat.

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Sind die Aktien durch Erbgang, Erbteilung, eheliches Güterrecht oder Zwangsvollstreckung erworben worden, so kann der Verwaltungsrat das Gesuch um Zustimmung nur ablehnen, wenn er im Namen der Gesellschaft dem Erwerber die Übernahme der Aktien zum wirklichen Wert anbietet.

Artikel 7 – Eigene Aktien

Sofern die Gesellschaft eigene Aktien hält, ruhen deren Stimm- und Vermögensrechte.

Artikel 8 – Generalversammlung

Die Generalversammlung ist spätestens 20 Tage vor dem Versammlungstag durch Brief oder E-Mail an die Aktionäre und Nutzniesser einzuberufen.

Eine Generalversammlung kann mit elektronischen Mitteln ohne Tagungsort durchgeführt werden. Auf die Bezeichnung eines unabhängigen Stimmrechtsvertreters kann verzichtet werden. Der Verwaltungsrat regelt die Verwendung elektronischer Mittel. Er stellt sicher, dass

1. die Identität der Teilnehmer feststeht;
2. die Voten in der Generalversammlung unmittelbar übertragen werden;
3. jeder Teilnehmer Anträge stellen und sich an der Diskussion beteiligen kann;
4. das Abstimmungsergebnis nicht verfälscht werden kann.

Treten während der Generalversammlung technische Probleme auf, sodass die Generalversammlung nicht ordnungsgemäss durchgeführt werden kann, so muss sie wiederholt werden. Beschlüsse, welche die Generalversammlung vor dem Auftreten der technischen Probleme gefasst hat, bleiben gültig.

Die Generalversammlung kann im Ausland durchgeführt werden, wenn der Verwaltungsrat in der Einberufung einen unabhängigen Stimmrechtsvertreter bezeichnet. Der Verwaltungsrat kann auf die Bezeichnung eines unabhängigen Stimmrechtsvertreters verzichten, sofern alle Aktionäre damit einverstanden sind.

Die Aktionäre üben ihr Stimmrecht in der Generalversammlung nach Verhältnis des gesamten Nennwerts der ihnen gehörenden Aktien aus.

Die Mitgliedschaftsrechte kann ausüben, wer im Aktienbuch als Aktionär eingetragen ist.

In der Generalversammlung berechtigt jede Aktie zu mindestens einer Stimme. Bei Beschlüssen über die Entlastung des Verwaltungsrats haben Personen kein Stimmrecht, die in irgendeiner Weise an der Geschäftsführung teilgenommen haben.

Ein Aktionär kann sich an der Generalversammlung durch eine bevollmächtigte Person, die nicht Aktionär zu sein braucht, und gegebenenfalls durch den unabhängigen Stimmrechtsvertreter, den Organvertreter oder einen Depotvertreter, vertreten lassen. Der Verwaltungsrat entscheidet über die Zulassung der Vollmachtserteilung.

Die Mitglieder des Verwaltungsrats sind berechtigt, an der Generalversammlung teilzunehmen. Sie können Anträge stellen.

Artikel 9 – Verwaltungsrat – Konstituierung und Wahl

Der Verwaltungsrat der Gesellschaft besteht aus einem oder mehreren Mitgliedern und konstituiert sich selbst.

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Die Amtsdauer eines Mitglieds des Verwaltungsrats dauert grundsätzlich ein Jahr, wobei die Jahresfrist am Tag der Wahl-Generalversammlung beginnt und grundsätzlich am ersten Jahrestag der Wahl-Generalversammlung endet. Wenn allerdings bis zu diesem ersten Jahrestag keine Generalversammlung mit Wiederwahl des betreffenden Mitglieds des Verwaltungsrats stattfindet, wird die Amtsdauer dieses Mitglieds des Verwaltungsrats bis zur nächsten effektiv durchgeführten Generalversammlung mit einer Wiederwahl des Mitglieds des Verwaltungsrats erstreckt, längstens aber bis zum sechsten Jahrestag der ursprünglichen Wahl-Generalversammlung.

Vorbehalten bleibt eine ausserordentliche Beendigung der Amtsdauer des betreffenden Mitglieds des Verwaltungsrats, z.B. durch Rücktritt, Tod, Abwahl oder Nichtwiederwahl in einer Generalversammlung oder Löschung der Gesellschaft im Handelsregister. Vorbehalten bleibt auch eine vorzeitige Wiederwahl in einer Generalversammlung, in welchem Fall eine neue Amtsdauer des betreffenden Mitglieds des Verwaltungsrats nach den vorstehenden Regeln zu laufen beginnt.

Artikel 9a – Verwaltungsrat – Beschlussfassung

Beschlüsse des Verwaltungsrats werden mit einfachem Mehr gefasst. Bei Stimmengleichheit hat der Vorsitzende den Stichentscheid.

Der Verwaltungsrat ist beschlussfähig, wenn die Mehrheit seiner Mitglieder anwesend ist. Als anwesend gelten auch Mitglieder, die mittels interaktiver Ton- oder Ton- und Bildübertragung unmittelbar an der Sitzung teilnehmen. Ausgenommen sind Beschlüsse im Zusammenhang mit Kapitalerhöhungen und der nachträglichen Leistung von Einlagen auf nicht vollständig liberierte Aktien, bei denen die Quorumsvoraussetzung nicht gilt.

Sitzungen können auch per Videokonferenz oder über andere audiovisuelle oder elektronische Kommunikationsmittel abgehalten werden, sofern die per Video, audiovisuellem Gerät oder anderen elektronischen Mitteln teilnehmenden Mitglieder eindeutig identifiziert werden können. Darüber hinaus gelten für Beschlüsse, die per Videokonferenz oder über andere audiovisuelle oder elektronische Kommunikationsmittel gefasst werden, die gleichen Bestimmungen wie für physische Sitzungen.

Beschlüsse und Wahlen können ohne Abhaltung einer Verwaltungsratssitzung gefasst werden, indem die schriftliche Zustimmung der Verwaltungsratsmitglieder zu einem bestimmten Vorschlag eingeholt wird (d.h. per Brief oder E-Mail), sofern kein Mitglied eine mündliche Beratung verlangt.

Für die Beschlussfassung des Verwaltungsrats im Zusammenhang mit Kapitalerhöhungen genügt die Anwesenheit eines Mitglieds des Verwaltungsrats.

Artikel 10 – Revisionsstelle

Die Generalversammlung wählt eine Revisionsstelle für die Dauer eines Jahres.

Sofern die Gesellschaft der eingeschränkten Revision unterliegt und nicht mehr als 10 Vollzeitstellen im Jahresdurchschnitt hat, kann der Verwaltungsrat den Aktionären beantragen, auf eine Revision zu verzichten.

Artikel 11 – Geschäftsjahr

Der Verwaltungsrat bestimmt den Beginn und das Ende des Geschäftsjahres.

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Artikel 12 – Auflösung der Gesellschaft

Die Auflösung der Gesellschaft kann durch einen Beschluss der Generalversammlung, über den eine öffentliche Urkunde zu errichten ist, erfolgen.

Die Liquidation wird durch den Verwaltungsrat besorgt, falls sie nicht durch einen Beschluss der Generalversammlung anderen Personen übertragen wird.

Artikel 13 – Mitteilungen und Bekanntmachungen

Mitteilungen an die Aktionäre erfolgen per Brief oder E-Mail an die im Aktienbuch verzeichneten Adressen. Mitteilungen an die Gesellschaft (z.B. Ausübung oder Verzicht von Rechten) erfolgen per Brief oder E-Mail.

Publikationsorgan der Gesellschaft ist das Schweizerische Handelsamtsblatt.

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Preliminary remark: The English version is for information purposes only and has no legal effect.

Articles of Association

of

Viatu AG

(Viatu SA) (Viatu Ltd)

with registered seat in Zug

Article 1 – Name and Seat

*Under the name **Viatu AG** (Viatu SA) (Viatu Ltd) a stock corporation pursuant to art. 620 et seq. of the Swiss Code of Obligations (CO) exists with its registered office in Zug, Canton of Zug, for an indefinite period of time.*

Article 2 – Purpose

The purpose of the company is to operate a technology and marketing platform in connection with tourism products of all kinds. The company may conduct any business related to this primary purpose.

The company may, for its own account as well as for the account of third parties, engage in any financial, commercial or industrial activity directly or indirectly related to the object of the company.

It may invest in other companies and set up branches and subsidiaries in Switzerland and abroad. It may acquire, hold and dispose of real estate and intellectual property rights.

In pursuing the purpose, the company achieves a significant positive impact on the common good and the environment through its business activities.

Article 3 – Share Capital and Shares

The share capital amounts to CHF 157'568.83 and is divided into 15'756'883 registered shares with a nominal value of CHF 0.01 per share.

The registered shares are paid up in the amount of CHF 107’568.83.

Article 4 – Form of Shares

Subject to the following paragraph, the registered shares of the company shall be structured as book-entry securities within the meaning of art. 973c of the Swiss Code of Obligations.

After being entered into the share register, the shareholder may at any time request the company to issue a document of proof confirming their registered shares; however, they have no right to demand the printing and delivery of shares certificates.

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The board of directors may change the type of securitization of the registered shares at any time and switch between ledger-based securities, registered securities, global securities, and uncertificated securities.

The board of directors may also register the registered securities, share certificates, global securities or the shares structured as uncertificated securities or ledger-based securities, which are deposited with the company or a custodian, as intermediated securities. The board of directors may withdraw shares registered as intermediated securities from the custodian system at any time.

Transfers of intermediated securities are subject to the Federal Intermediated Securities Act.

The respective valid registration conditions apply to ledger-based securities.

Shares issued as uncertificated securities can be contractually linked by the board of directors to tokens (such as ERC20 tokens) based on distributed ledger technology (DLT). The company bears the costs of conversion and linking.

Article 5 – Share Register

The company shall keep a share register, which shall contain the names and addresses of the owners or usufructuaries of the shares, together with the other information required under these articles of association or by the board of directors.

The company recognizes as shareholders the persons who are recorded in the company's share register as the owners or usufructuaries of shares.

Persons having acquired shares of the company will be recorded in the company's share register as shareholders, provided that they confirm in the manner specified by the company that they are holding the shares so acquired in their own name and for their own account. The company may ask a shareholder to repeat that confirmation at any time.

After having heard the relevant person, the company may cancel the registration of a shareholder from the share register with retroactive effect with respect to some or all of such shareholder's shares if the registration in the share register turns out to have been made on the basis of inaccurate information provided by the shareholder or if the relevant shareholder refuses, upon request, to confirm that they hold the relevant shares in their own name or for their own account. The relevant shareholder is informed of the cancellation.

The board of directors may adopt regulations on the transfer of shares and their registration in the company's share register.

Article 6 – Transfer of Shares

The transfer of the shares or the creation of a usufruct on the shares requires the approval of the board of directors.

The board of directors may refuse such approval by stating the reasons for the refusal, if the acceptance of the acquirer as a shareholder would hinder the company from producing evidence required by federal law in connection with the composition of the group of shareholders and if the sales of shares could challenge the purpose of the company according to art. 2 of these articles of association, in particular, if the acquirer is in a direct or indirect competitive relationship with the company.

In addition, the board of directors may refuse the request for approval if it offers in the name of the company to the seller of the shares to take over the shares for its account, for the account of other shareholders, or for the account of third parties at the real value at the time of the request or if the

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acquirer does not expressly declare that they have acquired the shares in their own name and for their own account.

If the shares have been acquired by succession, division of an estate, matrimonial property law, or compulsory execution, the board of directors may only refuse the request for consent if it offers to take over the shares at their actual value on behalf of the company.

Article 7 – Treasury Shares

If the company holds treasury shares, the voting and asset rights of such shares are suspended.

Article 8 – General Meeting of Shareholders

The general meeting must be convened by letter or e-mail to the shareholders and usufructuaries no later than 20 days before the date of the meeting.

The general meeting may be held by electronic means without a meeting place. The appointment of an independent voting representative may be waived. The board of directors shall regulate the use of electronic means. It shall ensure that

1. *the identity of the participants is established;*
2. *the oral contributions at the general meeting are directly transmitted; and*
3. *each participant can table motions and participate in the debate; and*
4. *the result of the vote cannot be falsified.*

If technical problems arise during the general meeting, with the result that the general meeting cannot be duly conducted, the meeting must be held again. Resolutions that the general meeting has passed before the technical problems arise remain valid.

The general meeting may be held abroad if the board of directors designate an independent voting representative in the notice convening the meeting. The board of directors may dispense with designating an independent voting representative provided all the shareholders agree.

The shareholders exercise their voting right at the general meeting in proportion to the total nominal value of the shares they hold.

Membership rights can be exercised by persons who are registered as a shareholder in the share register.

Each share is entitled to at least one vote in the shareholders' meeting. Persons who have in one way or another participated in the management of the company have no right to vote with regard to resolutions concerning the discharge of the board of directors.

A shareholder may be represented by proxy at the shareholders' meeting by a person who does not need to be a shareholder and, if applicable, by the independent shareholder representative, the representative of the board of directors or by a depository representative. The board of directors shall decide on the admission of the proxy.

Members of the board of directors are entitled to attend the shareholders' meeting and make proposals.

Article 9 – Board of Directors – Constitution and Election

The board of directors of the company consists of one or more members and constitutes itself.

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The term of office of a member of the board of directors generally lasts one year, whereby the one-year term begins on the day of the general meeting of shareholders at which the member is elected and generally ends on the first anniversary of such general meeting of shareholders. However, if no general meeting of shareholders is held by this first anniversary, the term of office of the respective member of the board of directors shall be extended until the next general meeting of shareholders at which the member of the board of directors is re-elected, but no longer than the sixth anniversary of the general meeting of shareholders at which the member of the board of directors was originally elected.

An extraordinary termination of the term of office of the respective member of the board of directors, e.g. due to resignation, death, removal or non-re-election at a general meeting of shareholders of the company or deletion of the company from the commercial register, remains reserved. Early re-election at a general meeting of shareholders is also reserved, in which case a new term of office of the respective member of the board of directors begins in accordance with the above rules.

Article 9a – Board of Directors – Resolutions

Resolutions of the board of directors shall be adopted by a simple majority. In case of a tie, the person chairing the meeting shall have the casting vote.

The board of directors shall have a quorum, if the majority of its members are present. Present are also members who attended the meeting simultaneously by interactive voice or voice and video transmission. These quorum requirements do not apply to resolutions in connection with capital increases and the subsequent contributions on shares not fully paid up.

Meetings may also be held by video conference or other audio-visual or electronic means of communication, provided that the members participating by video, audio-visual device or other electronic means can be clearly identified. In addition, the same provisions governing physical meetings shall apply to decisions taken by video conference or other audio-visual or electronic means of communication.

Resolutions can be passed and elections carried out without holding a meeting of the board of directors by obtaining the written consent of the board members to a given proposal (i.e. by letter or electronic mail), provided that no member requests oral deliberation.

The presence of one member of the board of directors shall be sufficient for the board of directors in connection with capital increases.

Article 10 – Auditor

The general meeting elects an auditor for a period of one year.

If the company is subject to a limited audit and has no more than 10 full-time positions on average per year, the board of directors may propose to the shareholders to waive the audit.

Article 11 – Financial Year

The board of directors sets the beginning and end of the financial year.

Article 12 – Liquidation of the Company

The dissolution of the company may be effected by a resolution of the general meeting of shareholders, which shall be recorded in a public deed.

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The liquidation shall be carried out by the board of directors unless it is transferred to other persons by a resolution of the general meeting.

Article 13 – Communications and Notices

Notices to shareholders shall be sent by letter or e-mail to the addresses recorded in the share register. Notifications to the company (e.g. exercise or waiver of rights) shall be made by letter or e-mail.

The means of publication of the company is the Swiss Official Gazette of Commerce.

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Annex 2.2.1: Subscription Forms

{*attached*}

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Annex 2.4: List of Parties for SHA

Existing Shareholders	
Name	**Email(s)**
Alfredo Seidemann	alfredo@viatu.com
Guido Juan Pablo Dunckel	guido@viatu.com
Pre-Seed Investors	
Name	**Email(s)**
Emilian Popa	emilienpopa@gmail.com
Lena Melcher	lenamelcher00@gmail.com
Simon Hasenfratz	s_hasenfratz@gmx.ch
Elisabeth Melcher	e.melcher@hotmail.com
Dominic Freudensprung	d.freudensprung@gmail.com
Sandro de Luca	sdl@private-market.ch
Dominik Kaiser	dominik14k@gmail.com
Luca Michas	lucamichas@gmail.com
Deniz Canay	cny.deniz@gmail.com
Franco Bargetze	fbargetze@gmail.com
Frederik Gerner	f.w.b.gerner@gmail.com
Ragna Sørlundsengen	ragnabs@gmail.com
Ben Willson	ben@viatu.com
Urs Helfenstein	uhelfenstein@gmail.com
Anita Sorlundsengen	anitabaksor@gmail.com
Loic Amado	amadoloic@gmail.com
Nicolas Buteau	nicolas@yayem.com
Georg Büchel	gwbuechel@bluewin.ch
Josef Büchel	j.buechel@hispeed.ch
Richard Steiblin	r.steiblin@breitband.ch

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Oliver Reuter	o.reuter@treufin-reuter.ch
Thomas Brunschwiler	thomas.brunschwiler@gmail.com
Seed Investors	
Name	**Email(s)**
Alpinschule Innsbruck GmbH	ambros.gasser@asi.at
Ndoto, LLC	Reviray@gmail.com Smillerviray1@gmail.com
Tåkeslottet AS	tore.nyhus@ofp.no
Teien Invest AS	teien@alpha-revisjon.no
Decision Lab AS	thorvald.harem@bi.no
Adank AG	adrian@adank-ag.ch
Maxime Calot	mcalot01@gmail.com
Alexander Schärer	alexander.c.schaerer@gmail.com
Stephan Baumann	hupfpfupf@gmail.com

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Annex 4: Ownership Structure (Cap Table)

Captable Viatu AG						
	Ordinary Shares		Preferred Seed Investor Shares		Total Shareholdings	
Shareholder	Shares (#)	Shareholding in Class (% voting)	Shares (#)	Shareholding in Class (% voting)		Shareholding (% voting)
Alfredo Seidemann	6'500'000	54.16%			6'500'000	41.25%
Guido Juan Pablo Dunckel	3'500'000	29.16%			3'500'000	22.21%
Emilian Popa	45'525	0.38%			45'525	0.29%
Lena Melcher	100'000	0.83%			100'000	0.63%
Simon Hasenfratz	25'000	0.21%			25'000	0.16%
Elisabeth Melcher	50'125	0.42%			50'125	0.32%
Dominic Freudensprung	25'115	0.21%			25'115	0.16%
Sandro de Luca	50'000	0.42%			50'000	0.32%
Maxime Calot	29'930	0.25%	24'592	0.66%	54'522	0.35%
Dominik Kaiser	25'000	0.21%			25'000	0.16%
Luca Michas	25'000	0.21%			25'000	0.16%
Alexander Schärer	125'000	1.04%	99'231	2.64%	224'231	1.42%
Deniz Canay	24'930	0.21%			24'930	0.16%
Franco Bargetze	250'000	2.08%			250'000	1.59%
Frederik Gerner	99'860	0.83%			99'860	0.63%
Ragna Sørlundsengen	25'000	0.21%			25'000	0.16%
Ben Willson	100'000	0.83%			100'000	0.63%
Urs Helfenstein	100'000	0.83%			100'000	0.63%
Anita Sorlundsengen	105'240	0.88%			105'240	0.67%
Loic Amado	50'000	0.42%			50'000	0.32%
Nicolas Buteau	42'857	0.36%			42'857	0.27%
Georg Büchel	128'571	1.07%			128'571	0.82%
Josef Büchel	28'571	0.24%			28'571	0.18%
Richard Steiblin	57'142	0.48%			57'142	0.36%
Matthias Wittenberg	89'445	0.75%			89'445	0.57%
Mariana Sánchez de Ovando	28'857	0.24%			28'857	0.18%
Oliver Reuter	199'928	1.67%			199'928	1.27%
Adank AG	85'714	0.71%	28'319	0.75%	114'033	0.72%
Thomas Brunschwiler	85'642	0.71%			85'642	0.54%
Alpinschule Innsbruck GmbH			380'319	10.13%	380'319	2.41%
Ndoto LLC			2'347'590	62.53%	2'347'590	14.90%
Tåkeslottet AS			353'070	9.40%	353'070	2.24%
Teien Invest AS			254'266	6.77%	254'266	1.61%
Decision Lab AS			210'090	5.60%	210'090	1.33%
Stephan Baumann			56'954	1.52%	56'954	0.36%
Totals (FD)	**12'002'452**	**100.00%**	**3'754'431**	**100.00%**	**15'756'883**	**100.00%**